

-
File No.: RR/00261/2023

IMI Reference: A56 78728 - Case Register 89995
-

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by GLOVOAPP23, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 7, 2023, and based on the following

FACTS

FIRST: On March 7, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file PS/00209/2022, whereby it was decided:

- TO DIRECT GLOVOAPP23, S.A., with NIF A66362906, previously GLOVOAPP23, S.L., with NIF B66362906, a warning for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, for failing to adequately inform the delivery personnel that, by using the “excellence score” system, automated decisions were being made as regulated in Article 22 of the GDPR.
- TO IMPOSE on GLOVOAPP23, S.A., with NIF A66362906, previously GLOVOAPP23, S.L., with NIF B66362906, a fine of €550,000 (five hundred fifty thousand euros), for the infringement of Articles 25 and 32 of the GDPR, classified under Article 83.4 of the GDPR, because the system used for managing access permissions to the delivery personnel's data allowed access to data not necessary for the users' work.

This resolution, which was notified to the appellant on March 17, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: The appellant submitted on April 17, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal, in which the proven facts of the resolution of the sanctioning procedure subject to this appeal are not contested, so they are considered proven facts of this reconsideration appeal resolution.

LEGAL GROUNDS

I

Competence

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/74

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following responses are provided in the order presented:

FIRST.- NON-EXISTENCE OF A MINOR INFRINGEMENT OF ARTICLE 13 OF THE GDPR AND NON-EXISTENCE OF A SERIOUS INFRINGEMENT OF ARTICLES 25 AND 32 OF THE GDPR

1.1. Absence of automated decisions referred to in Article 22 of the GDPR in the “excellence score”

system

The appellant argues that “it cannot be considered in any way that Glovo is the author of the minor infringement of Article 13 of the GDPR, in its section 2.f) consisting of failing to inform about individual automated decisions based on automated processing that Glovo allegedly made regarding the delivery personnel when granting preferential access for the reservation of a specific time slot based on the evaluation of the delivery person's 'excellence score', simply because such decisions did not exist.” And that what existed was an automated process based on parameters manually defined by Glovo and accepted by the delivery personnel that allowed for ample “human participation.”

The appellant claims that in the Sanctioning Resolution, the AEPD refers to the document of the now-defunct Article 29 Working Party “Guidelines on Automated Individual Decision-Making and Profiling for the Purposes of Regulation 2016/679” to justify the existence of such individual automated decisions based on automated processing, but that the AEPD has overlooked that in those same guidelines it defines how “human participation” must be for the processing not to fall under the definition of “decision based solely on automated processing” as set out in Article 22 of the GDPR.

Namely:

“To be considered as human participation, the data controller must ensure that any oversight of the decision is meaningful, rather than merely a symbolic gesture. It must be carried out by an authorized and competent person to modify the decision. As part of the analysis, all relevant data must be taken into account.” (the emphasis is from Glovo)

The appellant understands that it has been demonstrated that the number of human interventions that occurred in the “excellence score” system constitutes “clearly a ‘meaningful’ oversight altering the decision that was initially...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/74

would have taken the “excellence score” system by expressly authorized operators.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

Firstly, defending the thesis that the appellant applied a table of time slots “agreed upon by the parties,” which executed a decision “adopted by the parties by mutual agreement” and that allowed entry into the time slot according to a previously established order “based on the preferences of the parties” is, at the very least, surprising, because even in the hypothetical case that the workers accepted the use of the “excellence score” system to be able to participate in the platform and were aware of the existence of a table of time slots, they should have been informed that automated decisions were being made as contemplated in Article 22 of the GDPR, in the terms set forth in Article 13 of the GDPR.

Secondly, the aforementioned Guidelines on automated individual decision-making and profiling for the purposes of Regulation 2016/679 state: “Decisions based solely on automated processing represent the ability to make decisions by technological means without the involvement of a human being.”

That is to say, the making of an automated decision does not consist of a mere automated process, such as an automatic order dispatch system or goods receipt, but refers to the ability to make decisions by technological means. The use of technology to make decisions that affect individuals and that require the processing of personal data poses a greater risk to the rights and freedoms of the data subjects, as the algorithm may make erroneous, biased, or unfair decisions. Therefore, the GDPR establishes the safeguards that must be adopted in the use of algorithms that make decisions due to the greater risk they entail, among which a duty of transparency is imposed on the data controller.

In point IV of the aforementioned Guidelines, it states:

“Article 22, paragraph 1, refers to decisions ‘based solely’ on automated processing. This means that there is no human involvement in the decision-making process.

Example

An automated process produces what is, in reality, a recommendation regarding the data subject. If a human reviews and takes into account other factors to make the final decision, that decision will not be 'based solely' on automated processing.

The data controller cannot overlook the provisions of Article 22 by inventing human involvement. For example, if someone routinely applies automatically generated profiles to individuals without it having any real influence on the outcome, this would still be a decision based solely on automated processing.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/74

To be considered as human participation, the data controller must ensure that any oversight of the decision is meaningful, rather than merely a symbolic gesture. It must be carried out by an authorized and competent person to modify the decision. As part of the analysis, all relevant data must be taken into account.

As part of the DPIA, the data controller must identify and record the degree of human participation in the decision-making process and at what point this occurs.

In the present case, this Agency understands that it is the system that made the decision regarding the order in which certain couriers were allowed to access a specific time slot for reservation, regardless of the fact that it was the appellant, as the data controller, who entered the necessary parameters into the System for it to make such a decision.

The decision regarding the order in which couriers were allowed to access the time slots was made by the application, without any human intervention of any kind. Human intervention only occurred in those cases where couriers filed complaints, but if there was no complaint, there was no human intervention that modified that decision nor any oversight of such a decision.

The fact that a certain number of human interventions had occurred does not prevent the conclusion that the decision regarding access to the time slots in question was made by the application without any human intervention on its part, especially considering that human intervention did not occur in all cases and that it took place only after a complaint from the interested parties, which would fulfill the obligation of the data controller to ensure the right of the interested parties to obtain human intervention, as stated in Article 22.3 of the GDPR, which provides: "In the cases referred to in paragraph 2, letters a) and c), the data controller shall take appropriate measures to safeguard the rights and freedoms and the legitimate interests of the data subject, at a minimum the right to obtain human intervention on the part of the controller, to express their point of view, and to contest the decision," and in Recital 71: "(...) However, decisions based on such processing, including profiling, should be allowed if expressly authorized by Union or Member State law applicable to the data controller, even for the purposes of fraud control and tax evasion prevention, carried out in accordance with the regulations, standards, and recommendations of the Union institutions or national supervisory bodies and to ensure the security and reliability of a service provided by the data controller, or necessary for the conclusion or execution of a contract between the data subject and a data controller, or in cases where the data subject has given their explicit consent. In any case, such processing must be subject to appropriate safeguards, including specific information to the data subject and the right to obtain human intervention, to express their point of view, to receive an explanation of the decision made after such assessment, and to contest the decision (...)." However, the adoption of this system of safeguards does not exempt the controller from fulfilling the information duties set out in Article 13.2.f) of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/74

Thirdly, this Agency understands that it was the System that formed the blocks of couriers and

assigned them a priority order when selecting a specific time slot, based on the "excellence score." This selection was made without human intervention, that is, in an automated manner, as explained previously. Regardless of whether there may be human intervention at all stages of the process, the determination of the blocks of couriers and their priority when selecting a time slot was made by the System. Human intervention was a possibility that existed to carry out specific actions that could modify the decision made by the System, but this does not prevent the fact that the decision regarding the priority assigned to a courier was being made automatically.

Fourthly, in the expert report provided as DOCUMENT 2 of the allegations to the initiation agreement of the sanctioning procedure, a representative sample of operations of the excellence score system is analyzed to demonstrate the non-existence of automated individual decisions during the months of February and March 2020, dates on which the AEPD inspection took place, concluding:

"From the previous results, a clear human intervention in the decision-making regarding the access of couriers to the reservation of time slots is deduced, reaching even in some cases nearly 40% of the total operations analyzed."

The aforementioned report details that "between the dates of March 20, 2020, and April 1, 2020, there were a total of 16,175 log entries, of which 38.6% were manual interventions corresponding to 'kickout' actions or manual expulsion of couriers from the reserved time slot. These actions were carried out by 29 different human operators."

And that "in a sample of one week (from March 24, 2020, to April 1, 2020), there were up to 13 manual increases in the capacity of the time slots, carried out by 6 different human operators."

But this Agency wishes to point out that the Guidelines on automated individual decisions and profiling for the purposes of Regulation 2016/679 indicate that:

"Article 22, paragraph 1, refers to decisions 'based solely' on automated processing. This means that there is no human participation in the decision-making process. (...)

(...)

To be considered as human participation, the data controller must ensure that any supervision of the decision is meaningful, rather than merely a symbolic gesture. It must be carried out by an authorized and competent person to modify the decision. As part of the analysis, all relevant data must be taken into account."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/74

As part of the DPIA, the data controller must identify and record the degree of human involvement in the decision-making process and at what point this occurs.

In the present case, the fact that there were a certain number of human interventions does not imply that the System was not making automated decisions. In fact, Article 22 of the GDPR states that, in cases where the processing is necessary for the performance of a contract (as in the present case), "the data controller shall take appropriate measures to safeguard the rights and freedoms and legitimate interests of the data subject, at a minimum the right to obtain human intervention on the part of the controller, to express his or her point of view and to contest the decision." Therefore, the possibility of human intervention in the case of automated decision-making is, in fact, an obligation imposed on the data controller, who must guarantee this possibility to those affected by such decisions.

In any case, the appealing party, through the use of the "excellence score," was making automated decisions as referred to in Article 22 of the GDPR without informing about it (even denying it) in the relevant documents, thus violating the provisions of Article 13 of the GDPR.

Fifthly, this Agency wishes to point out that Article 22 of the GDPR establishes: "Every data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or

her.” That is to say, the individual automated decisions regulated in Article 22 are those that are based solely on automated processing and that produce legal effects on the data subjects or significantly affect them in a similar manner.

In this regard, this Agency understands that the "excellence score" produced legal effects on the data subjects as it assigned them a priority to access the reservation of hours in a specific time slot, which directly impacted their work and income. The fact that there could be manual intervention, as previously explained, does not prevent that in the present case individual automated decisions were being made.

Therefore, this Agency insists that GLOVOAPP was indeed making individual automated decisions and, consequently, should have duly informed the couriers of this situation.

Recital 71 of the GDPR states:

“(71) The data subject should have the right not to be subject to a decision, which may include a measure, that evaluates personal aspects concerning him or her, and that is based solely on automated processing and produces legal effects concerning him or her or similarly significantly affects him or her, such as the automatic denial of an online credit application or online hiring services where there is no human intervention. This type of processing includes profiling consisting of any form of automated processing of personal data that evaluates personal aspects concerning a natural person, in particular to analyze...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/74

to predict aspects related to job performance, economic situation, health, personal preferences or interests, reliability or behavior, the situation or movements of the data subject, to the extent that it produces legal effects on them or significantly affects them in a similar manner. However, decisions based on such processing, including profiling, should be permitted if expressly authorized by Union or Member State law applicable to the data controller, even for the purposes of fraud control and prevention, and tax evasion, carried out in accordance with the regulations, standards, and recommendations of Union institutions or national supervisory bodies and to ensure the security and reliability of a service provided by the data controller, or necessary for the conclusion or execution of a contract between the data subject and a data controller, or in cases where the data subject has given their explicit consent. In any case, such processing must be subject to appropriate safeguards, which must include specific information to the data subject and the right to obtain human intervention, to express their point of view, to receive an explanation of the decision made after such evaluation, and to contest the decision. Such a measure must not affect a minor.

The aforementioned Guidelines on automated individual decision-making and profiling for the purposes of Regulation 2016/679 explain:

“(…)

In summary, Article 22 provides as follows:

- i) as a rule, there is a general prohibition on making individual decisions based solely on automated processing, including profiling, which produce legal effects or significantly similar effects;
- ii) there are exceptions to this rule;
- iii) when one of these exceptions applies, there must be measures in place to safeguard the rights and freedoms of the data subject, as well as their legitimate interests.

This interpretation reinforces the idea that it is the data subject who should have control over their personal data, which aligns with the fundamental principles of the GDPR. Interpreting Article 22 as a prohibition rather than as a right that must be invoked means that individuals are automatically protected against the potential consequences that this type of processing may have. The wording of the article suggests that this is the intention, and it is supported by Recital 71, which states:

“However, decisions based on such processing, including profiling, should be permitted if expressly authorized by Union or Member State law [...], or necessary for the conclusion or execution of a contract [...], or in cases where the data subject has given their explicit consent.”

This implies that the processing provided for in Article 22(1) is not generally permitted. However, the prohibition in Article 22(1) only applies in specific circumstances when a decision based solely on automated processing, including profiling, produces legal effects or significantly affects the data subject.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/74

similarly to someone, as explained further in the guidelines. Even in these cases, there are defined exceptions that allow such processing.

The mandatory protective measures, described in more detail below, include the right to be informed (provided for in Articles 13 and 14 —specifically significant information about the logic applied, as well as the importance and expected consequences for the data subject—) and guarantees, such as the right to obtain human intervention and the right to contest the decision (provided for in Article 22, paragraph 3).

Any processing that likely entails a high risk for the data subjects requires the data controller to carry out a data protection impact assessment (DPIA). In addition to addressing any other risks related to the processing, a DPIA can be especially useful for those data controllers who are unsure whether their proposed activities fall within the definition of Article 22, paragraph 1, and, in the event that an identified exception allows them, what protective measures should be applied. (...)

That is to say, in principle, the GDPR prohibits individual decisions based solely on automated processing, which produce legal effects concerning the data subject or significantly affect them, as in this case, since the priority with which a delivery person enters a certain time slot, or not, directly affects their income. For this reason, the duty of transparency is reinforced in these cases, so that the data subject is aware that automated decisions are being made and their effects.

Sixth, as has been demonstrated in this procedure, the “excellence score” system is the score assigned to delivery persons, based on, among other things, the following data:

- a. the number of orders made in high-demand time slots in the last 28 days,
- b. the feedback from stores in the last 50 orders, which can be positive, negative, or not rated,
- c. the feedback from users in the last 50 orders, which can be positive, negative, or not rated,
- d. rejected or reassigned orders in the last 50 orders, although, in Spain, reassignment does not penalize,
- e. order history since the beginning of the collaboration.

This score is calculated automatically, without any human intervention, based on the aforementioned parameters. While it is true that the values used to calculate the excellence score could be modified manually, this would only occur if a delivery person files a complaint, usually through billing.

Returning to the matter at hand, to decide which delivery persons would work in a certain time slot, the procedure followed by GLOVOAPP was as follows:

- 1) The maximum number of delivery persons needed for a specific time slot on a given day was calculated (automatically).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/74

- 2) All registered couriers in a city or operational area of the app were selected (automatically).

- 3) These couriers were ordered (automatically) according to their Excellence Score (also calculated automatically).

- 4) Twice a week (on Mondays and Thursdays), a notification was sent (automatically) to each courier informing them that the selection of time slots for certain days of the week was now available (on Mondays, they could reserve time slots for Thursday, Friday, Saturday, and Sunday; and on Thursdays, they could reserve time slots for the following week's Monday, Tuesday, and Wednesday),

following a descending order based on the previous ranking. Of course, in each of these phases, there could be human intervention to correct specific issues (and upon prior complaint), but the reality was that the entire process was carried out automatically, so the decision regarding which couriers accessed or did not access a particular time slot and in what order was an automated decision. Furthermore, this automated decision had legal effects on the interested party (in this case, the couriers) since the possibility of accessing or not accessing a particular time slot directly affected their income.

Therefore, in this case, this Agency considers that GLOVOAPP was making automated decisions as referred to in Article 22 of the GDPR, and that this situation should have been communicated to the couriers in those terms, and GLOVOAPP violated the provisions of Article 13 of the GDPR by failing to do so.

For all the above reasons, this allegation is dismissed.

Additionally, the appellant argues that if it is ultimately considered that Glovo was making individual automated decisions using the "excellence score" system, the AEPD itself already recognizes that these were communicated to the couriers through videos and the blog, as expressly indicated on page 128 of the Sanctioning Resolution.

In this regard, this Agency wishes to point out that it is true that information about the existence of the "excellence score" was provided, but it was not indicated that its use implied the existence of automated decisions, as required by the GDPR in its Article 13.2.f).

Finally, the fact that information about the "excellence score" was provided to the couriers through means other than the contracts between the appellant and the couriers has already been taken into account by this Agency to replace a possible fine with a warning, in the terms of Article 58.2.b) of the GDPR.

For all the above reasons, this allegation is dismissed.

1.2. Absence of indiscriminate access to personal data of the couriers and existence of proactive responsibility of Glovo

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/74

The appellant argues that Glovo cannot be considered the author of the serious infringement of Articles 25 and 32 of the GDPR, which consists of the existence of indiscriminate access to the data of the delivery personnel.

It has been abundantly demonstrated that Glovo clearly defined user profiles within its organization that, in turn, allowed access to the delivery personnel data only necessary to fulfill the processing purposes defined at each moment, which was in line with the organizational structure that Glovo has maintained over time since its establishment.

Furthermore, the appellant claims that the Sanctioning Resolution "erroneously criticizes Glovo for not adopting a proactive attitude in complying with the principles and obligations established by the GDPR, since it allegedly did not conduct a prior analysis before processing the data of delivery personnel in which the possible implications for their rights and freedoms were analyzed."

In this regard, the appellant, in addition to DOCUMENT 30 included in the file where, in their opinion, an analysis of the treatment of the risks that it involved for the rights and freedoms of the delivery personnel was conducted, brings up the transversal risk analysis that Glovo had already carried out with the help of its external advisors ***COMPANY.1 (DOCUMENT 1), applicable in general to all treatments carried out by Glovo and which concluded that they did not pose a special risk to the rights and freedoms of the data subjects.

The appellant believes that this demonstrates that Glovo has indeed taken into account the principles of data protection and the risks that its treatments may generate for all data subjects (including delivery personnel), in accordance with the principle of active responsibility required by the GDPR, which the AEPD erroneously claims Glovo has not respected.

Regarding this analysis, the appellant specifies that it has not been provided up to this moment since it

was a transversal analysis applicable to all treatments, and that it is not solely directed at the processing of data of delivery personnel.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

Firstly, the text of paragraph 2 of Article 25 of the GDPR is as follows:

"2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, the extent of their processing, the duration of their storage, and their accessibility. Such measures shall ensure in particular that, by default, personal data are not accessible, without the intervention of the data subject, to an indeterminate number of natural persons."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/74

That is, the obligation to implement appropriate measures to ensure that only the personal data necessary for each specific purpose of processing is subject to processing applies not only to the accessibility of the data but also to the amount of personal data collected, the extent of its processing, and its retention period.

And that, in particular, such measures must ensure that, by default, personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons. This means that such measures must guarantee the aforementioned, but not only that.

This Agency insists that when the GDPR refers to measures that ensure personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons, it uses the phrase "in particular." This means that preventing indiscriminate access to the data of delivery personnel is one of the obligations referenced by the GDPR, but it is not the only one. In fact, the first obligation referenced in Article 25.2 of the GDPR is to implement appropriate measures to ensure that, by default, only personal data necessary for each specific purpose of processing is processed. In other words, that data that is not strictly necessary for each purpose for which it is processed is not processed.

In the present case, data of delivery personnel from countries that did not need to be processed to track those delivery personnel was being processed due to a lack of foresight in designing appropriate measures to ensure compliance with the principle of data minimization, as well as the absence of appropriate measures to ensure that, by default, only necessary data is processed. Therefore, Article 25 of the GDPR is not complied with.

The same can be said for Article 32 of the GDPR, since the technical and organizational measures applied did not guarantee an adequate level of security relative to the risk, given that the system allowed users access to data of delivery personnel that they did not need to process for the purpose for which it was used.

Secondly, this Agency wishes to remind the concept of proactive responsibility, regulated in paragraph 2 of Article 5 "Principles relating to processing" of the GDPR, which states: "2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('proactive responsibility')."

Directly related to the principle of proactive responsibility provided in Article 5.2 of the GDPR is the "Responsibility of the data controller," from Article 24 of the GDPR, which states:

"1. Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated when necessary."

C/ Jorge Juan, 6

www.aepd.es

2. When provided in relation to processing activities, the measures mentioned in paragraph 1 shall include the application, by the data controller, of appropriate data protection policies. (...)"

In line with these provisions, Recital 74 of the GDPR states: "The responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures."

Also related to the principle of proactive responsibility is the principle of "Data protection by design and by default," as set out in Article 25 of the GDPR, which establishes:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity posed by the processing to the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to meet the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, the extent of their processing, their retention period, and their accessibility. Such measures shall ensure in particular that, by default, personal data are not accessible, without the intervention of the data subject, to an indefinite number of natural persons.

3. An approved certification mechanism under Article 42 may be used as an element to demonstrate compliance with the obligations set out in paragraphs 1 and 2 of this Article."

In line with these provisions, Recital 78 of the GDPR states:

"The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure compliance with the requirements of this Regulation. In order to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that specifically comply with the principles of data protection by design and by default. Such measures could consist, among others, of minimizing the processing of personal data, pseudonymizing data as soon as possible."

personal data, provide transparency to the functions and processing of personal data, allowing data subjects to monitor the processing of data and the data controller to create and improve security elements. In developing, designing, selecting, and using applications, services, and products that are based on the processing of personal data or that process personal data to fulfill their function, producers of products, services, and applications should be encouraged to take into account the right to data protection when developing and designing these products, services, and applications, and to ensure, with due regard to the state of the art, that data controllers and processors are in a position to fulfill their obligations regarding data protection. The principles of data protection by design and by default must also be considered in the context of public contracts.

In particular, in light of GDPR Recital 78, the principle of data protection by design is the key that the data controller must follow to demonstrate compliance with the GDPR, as "the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default."

Throughout the sanctioning procedure, it has been established that the access permission system for the data of the delivery personnel, implemented by GLOVOAPP, did not initially comply with these principles and obligations established by the GDPR, since the company did not carry out a prior analysis of the processing in which the possible implications for the rights and freedoms of the delivery personnel were properly analyzed, which would have avoided the implementation of a management model for access permissions that did not guarantee the principle of minimization. On the contrary, GLOVOAPP did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were "patches" in software, solving problems as they arose in accordance with changes in the structure of the organization, as GLOVOAPP has stated in its allegations to the initiation agreement of the present sanctioning procedure.

The freedom of enterprise enshrined in Article 38 of the Spanish Constitution is not an absolute right, but must be reconciled with the other rights recognized by the legal system.

In this regard, it is pertinent to mention the ruling 292/2000, of November 30, from the Constitutional Court, which establishes the right to data protection as an autonomous and independent right that consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or what data this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. Thus, according to Legal Grounds 4, 5, 6, and 7 of the ruling of the high court:

"4. Without the need to detail the wide possibilities that computing offers both to collect and to communicate personal data nor the undeniable risks that this may entail, given that a person may be unaware not only of what data concerning them is collected in a file but also whether it has been transferred to another and for what purpose, it is..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/74

It is sufficient to indicate both extremes to understand that the fundamental right to privacy (art. 18.1 CE) does not, by itself, provide adequate protection against this new reality arising from technological progress.

Now, with the inclusion of the current art. 18.4 CE, the constituent made it clear that it was aware of the risks that the use of computing could entail and entrusted the legislator with the guarantee of certain fundamental rights as well as the full exercise of personal rights. That is, by incorporating a guarantee institute "as a response to a new form of specific threat to the dignity and rights of the person," but which is also, "in itself, a fundamental right or freedom" (STC 254/1993, of July 20, FJ 6). This concern and purpose of the constituent is evident, on one hand, if one considers that a similar section to the current art. 18.4 CE was already included in the draft constitutional text and that it was later expanded upon accepting an amendment to include its final clause. And more clearly, on the other hand, because if in the Senate debate some doubts arose regarding the necessity of this section of the provision given the recognition of the rights to privacy and honor in the initial section, they were, however, dispelled by highlighting that these rights, in view of their content, did not offer sufficient guarantees against the threats that the use of computing could pose to the protection of private life. Thus, the constituent intended to guarantee through the current art. 18.4 CE not only a specific area of protection but also one more suitable than that which could be offered, by themselves, by the fundamental rights mentioned in section 1 of the provision.

5. (...)

Well, in these decisions, the Court has already declared that art. 18.4 CE contains, in the terms of STC 254/1993, a guarantee institute for the rights to privacy and honor and for the full enjoyment of the other rights of citizens which, moreover, is in itself "a fundamental right or freedom, the right to freedom against potential assaults on the dignity and freedom of the person arising from the unlawful use of the mechanized processing of data, what the Constitution calls 'computing'," which has been

referred to as "informatic freedom" (FJ 6, reiterated later in SSTC 143/1994, FJ 7, 11/1998, FJ 4, 94/1998, FJ 6, 202/1999, FJ 2). The guarantee of the private life of the person and of their reputation today has a positive dimension that exceeds the scope of the fundamental right to privacy (art. 18.1 CE), and translates into a right of control over data related to the person themselves. The so-called "informatic freedom" is thus the right to control the use of the same data inserted in a computer program (habeas data) and includes, among other aspects, the citizen's opposition to certain personal data being used for purposes other than that legitimate purpose which justified its acquisition (SSTC 11/1998, FJ 5, 94/1998, FJ 4).

This fundamental right to data protection, unlike the right to privacy in art. 18.1 CE, which shares the objective of providing effective constitutional protection of personal and family private life, attributes to its holder a bundle of powers that consists mainly of the legal power to impose on third parties the performance or omission of certain behaviors whose specific regulation must be established by Law, which, in accordance with art. 18.4 CE, must limit the use of computing, either by developing the fundamental right to data protection (art. 81.1 CE), or by regulating its

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/74

exercise (art. 53.1 CE). The peculiarity of this fundamental right to data protection in relation to the closely related fundamental right to privacy lies, therefore, in its distinct function, which consequently implies that its object and content also differ.

6. The function of the fundamental right to privacy under art. 18.1 CE is to protect against any invasion that may occur in that area of personal and family life that the individual wishes to exclude from the knowledge of others and from the intrusions of third parties against their will (see, among others, STC 144/1999, of July 22, FJ 8). In contrast, the fundamental right to data protection aims to guarantee that individual a power of control over their personal data, its use and destination, with the purpose of preventing its unlawful and harmful trafficking to the dignity and rights of the affected party. Ultimately, the right to privacy allows for the exclusion of certain data about a person from the knowledge of others; for this reason, and as this Court has stated (SSTC 134/1999, of July 15, FJ 5; 144/1999, FJ 8; 98/2000, of April 10, FJ 5; 115/2000, of May 10, FJ 4), it means the power to safeguard one's private life from unwanted publicity. The right to data protection guarantees individuals a power of disposition over that data. This guarantee imposes on public authorities the prohibition of becoming sources of that information without the necessary safeguards; and also the duty to prevent risks that may arise from the improper access or disclosure of such information. However, that power of disposition over one's personal data is of no value if the affected party is unaware of what data is held by third parties, who holds it, and for what purpose.

Hence the uniqueness of the right to data protection, since, on one hand, its object is broader than that of the right to privacy, as the fundamental right to data protection extends its guarantee not only to privacy in its constitutionally protected dimension under art. 18.1 CE, but also to what this Court has sometimes defined in broader terms as the sphere of personal goods that belong to the realm of private life, inextricably linked to the respect for personal dignity (STC 170/1987, of October 30, FJ 4), such as the right to honor, expressly mentioned in art. 18.4 CE, and likewise, in a very broad expression of art. 18.4 CE itself, to the full exercise of personal rights. The fundamental right to data protection expands the constitutional guarantee to those data that are relevant to or have an impact on the exercise of any personal rights, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family privacy, or any other constitutionally protected good.

In this way, the object of protection of the fundamental right to data protection is not limited only to the intimate data of the individual, but to any type of personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether or not fundamental, because its object is not only individual privacy, which is covered by the protection granted by art. 18.1 CE, but personal data. Consequently, it also extends to those public personal data, which by virtue of being

accessible to anyone, do not escape the power of disposition of the affected party because their right to data protection guarantees it. For this reason, the fact that the data is of a personal nature does not mean that only those related to the private or intimate life of the individual are protected, but rather...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/74

that the protected data includes all information that identifies or allows for the identification of a person, which may serve to create their ideological, racial, sexual, economic, or any other type of profile, or that serves any other purpose that, under certain circumstances, constitutes a threat to the individual. However, the fundamental right to data protection also has a second peculiarity that distinguishes it from others, such as the right to personal and family privacy under Article 18.1 of the Spanish Constitution (CE). This peculiarity lies in its content, since unlike the latter, which grants the individual the legal power to impose on third parties the duty to refrain from any intrusion into the intimate sphere of the person and the prohibition of using what is thus known (Constitutional Court Judgments [SSTC] 73/1982, of December 2, FJ 5; 110/1984, of November 26, FJ 3; 89/1987, of June 3, FJ 3; 231/1988, of December 2, FJ 3; 197/1991, of October 17, FJ 3, and in general SSTC 134/1999, of July 15, 144/1999, of July 22, and 115/2000, of May 10), the right to data protection attributes to its holder a bundle of powers consisting of various legal powers whose exercise imposes legal duties on third parties, which are not contained in the fundamental right to privacy, and which serve the capital function that this fundamental right performs: to guarantee the individual a power of control over their personal data, which is only possible and effective by imposing on third parties the aforementioned duties to act. Namely: the right to require prior consent for the collection and use of personal data, the right to know and be informed about the destination and use of that data, and the right to access, rectify, and cancel such data. Ultimately, the power of disposition over personal data (STC 254/1993, FJ 7).

7. From all that has been said, it follows that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who holds that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.

In short, characteristic elements of the constitutional definition of the fundamental right to personal data protection are the rights of the affected individual to consent to the collection and use of their personal data and to be informed about them. And it is essential to make that content effective the recognition of the right to be informed of who holds their personal data and for what purpose, and the right to oppose that possession and use by requiring the relevant party to cease the possession and use of the data. That is to say, demanding that the data holder inform them of what data they possess about their person.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/74

person, accessing their appropriate records and entries, and what destination they have had, which also extends to possible assignees; and, if applicable, require them to rectify or cancel them.”

Therefore, any action that deprives the person of those powers of disposal and control over their personal data constitutes an attack and a violation of their fundamental right to data protection. For this reason, a special duty of diligence is imposed when carrying out the use or processing of personal data, regarding compliance with the duties established by data protection legislation to guarantee the fundamental rights and public freedoms of individuals, and especially their honor and personal and family privacy, the intensity of which is enhanced by the relevance of the legal goods protected by those norms and the professionalism of the responsible parties or those in charge, especially when they operate for profit in the data market; in this sense, the National Court ruling 392/2015, of November 17 (See its Legal Ground Third), has also pronounced.

In short, due to the importance of the protected legal good, GLOVOAPP was obliged to find organizational solutions before the start of processing that guaranteed the principle of minimization and set, by default, a limit on the accessibility of the data, regardless of the size of its organization or the number of employees it had, since these risks were the same regardless of the number of couriers at a given moment.

The access permission system for the couriers' data was not properly configured in the initial moments, so that access was limited geographically by default.

To claim that GLOVOAPP complied with what is established in the GDPR in no way infringes upon the freedom of enterprise recognized in Article 38 of the Spanish Constitution. It simply demands that the company comply with current legislation. And in the realm of the fundamental right to the protection of personal data, it is the AEPD that holds the competence for this.

Thirdly, this Agency wishes to point out that it is not a matter of indiscriminate access to personal data, but rather that the access permission system for the couriers' personal data did not respect what is established in paragraph 2 of Article 25 of the GDPR in the sense of “ensuring that, by default, only personal data that is necessary for each of the specific purposes of the processing is subject to processing.” Certainly, those who had the “EU User Access” permission had access to personal data of couriers that were not necessary for the purposes of their processing. So much so that subsequently this access permission system was replaced by another, which grants access permissions differentiating by geographical regions by countries and/or cities.

As indicated earlier, proactive responsibility involves the implementation of a compliance and management model for the GDPR that determines the widespread compliance with obligations regarding data protection. It includes the establishment, maintenance, updating, and control of data protection policies within an organization - understood as the set of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/74

guidelines governing the actions of an organization, practices, procedures, and tools— from privacy by design and by default, ensuring compliance with the GDPR, preventing the materialization of risks, and allowing it to demonstrate its compliance.

It revolves around risk management. As established in Report 0064/2020 from the Legal Office of the AEPD, the metamorphosis of a system that has transitioned from being reactive to becoming proactive is shown, since “at the present time, it must be taken into account that the GDPR has represented a paradigm shift in addressing the regulation of the right to personal data protection, which is now based on the principle of ‘accountability’ or ‘proactive responsibility’ as repeatedly pointed out by the AEPD (Report 17/2019, among many others) and is reflected in the Preamble of the LOPDGDD: ‘the greatest novelty presented by Regulation (EU) 2016/679 is the evolution from a model fundamentally based on compliance control to one that rests on the principle of active responsibility, which requires a prior assessment by the data controller or the processor of the risk that may be generated by the processing of personal data in order to, based on that assessment, adopt the necessary measures.’

It requires a conscious, committed, active, and diligent attitude. Consciousness implies the knowledge of one’s organization by the data controller and how it is affected by data protection and the inherent risks of personal data processing; commitment involves the willingness to comply and to truly take

responsibility for the implementation of data protection policies within the organization; the active attitude is related to proactivity, effectiveness, efficiency, and operability; and diligence is the care, zeal, and dedication put into compliance.

GLOVO should have taken into account the measures applicable to its access system aimed at complying with the principle of minimization during the design process, which it does not appear to have done, a circumstance that constitutes a violation of Article 25.1 of the GDPR.

On the other hand, to comply with the principle of data protection by default, the data controller must not collect more data than necessary, nor carry out a processing of the collected data that is broader than necessary for its purposes, nor retain the data for longer than necessary. The basic requirement is that data protection is integrated into processing by default, as stated in Guidelines 4/2019 regarding Article 25 Data protection by design and by default.

Having established the above, it can be affirmed that, from the instruction of the procedure, it was found, among other things, the lack of adequate measures to ensure that, by default, only the data necessary for the intended purpose would be processed, which constitutes a violation of Article 25.2 of the GDPR.

A mechanism that limited user access to data that was not necessary was also not established, a circumstance that violates Article 32 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/74

In fourth place, this Agency acknowledges that GLOVOAPP had different user profiles, that there was a property of the user profile that provided access, or not, to data of European couriers, “EU User Access,” and that those who did not have this permission could only access basic courier data; that “EU User Access” was a profile feature used in practice at the time of the inspection; and that not all profiles could access or modify courier information.

What this Agency questions, precisely, is not the lack of profiles but the lack of user profiles that allowed access only to the data of couriers in the appropriate geographical area. It is not that there were profiles that did not allow access to courier data, but rather that those that did allow access enabled access to more data than necessary. That is to say, in the present case, that within the profiles that were supposed to have access to courier data, there were no profiles differentiated by regions, countries, cities, or any other similar parameter. This functionality was indeed incorporated later.

In fifth place, the GDPR does not make distinctions regarding the obligations of data controllers based on the size or growth experienced by the company, nor the business development scheme it uses, nor according to how it decides to organize itself to carry out its activities.

The GDPR merely states that data controllers must comply with the obligations established therein.

Regarding Article 25 of the GDPR, the data controller must apply, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures to effectively apply the principles of data protection and integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects. And it must apply appropriate technical and organizational measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed. And regarding Article 32 of the GDPR, the data controller must apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk.

What the GDPR does indicate is that, in both cases, a series of factors will be taken into account to identify the measures in question, such as the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as variable probabilities and severity risks for the rights and freedoms of natural persons.

However, the fact that it was an expanding company, nor that it used an agile methodology, nor even that it decided to centralize customer or courier support in a specific location results in a situation that could exempt GLOVOAPP from complying with the provisions of the regulation.

Precisely, it should have anticipated before starting the processing in question what measures it would apply. And once its activity had begun, as the company grew and operated in more countries and cities, it should also have reviewed whether the technical and organizational measures were appropriate. And GLOVOAPP should have arranged the means.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/74

necessary for the personnel who were to access the data of the delivery personnel to only access the data necessary to perform their work, no more and no less. Even assuming that it was an outsourced activity carried out from a single location, the mere organization of the work indicates that each worker would not be in a position to manage the total volume of requests, but rather the task would be distributed, especially considering that these are countries that do not even share a common language. Therefore, there was personnel who had access to data of delivery personnel from countries for which it was not necessary for them to have access, given that they would not process requests from these individuals.

And it has been established in the file that the permissions granted to the personnel assigned to the customer service or delivery personnel department had access to the data of all delivery personnel in the European Union, without being limited in any way, neither by countries, nor cities, nor regions, nor anything.

In sixth place, this Agency wishes to point out that the aforementioned DOCUMENT 30, which was submitted along with the written allegations to the initiation agreement of PS/00020/2021, is nothing other than a "Pre-Impact Assessment Checklist" (as stated in its description), in which GLOVOAPP merely limits itself to "Check whether a processing operation meets the characteristics for conducting a data protection impact assessment" (as stated in its section "Processing"). As for its content, it is a document that only reviews whether it is carried out:

-

(...)

None of these documents provide an analysis of the risks to the personal data of the delivery personnel nor do they refer to any measures, either planned or implemented from the design, that prevent non-compliance with the principle of minimization or guarantee that, by default, no unnecessary data of the delivery personnel is processed, as required by Article 25. There are also no measures to ensure the security of this data, as required by Article 32 of the GDPR.

Article 25 of the GDPR states that: "Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to meet the requirements of this Regulation and protect the rights of the data subjects. (...)"

And Article 32 of the GDPR states that: "Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk (...)"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/74

In the present case, none of the documents submitted by the appellant refer to the possible risks to

which the data of the delivery personnel could be exposed, nor do they mention the appropriate technical and organizational measures to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards in the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects (Article 25 GDPR), nor do they refer to the appropriate technical and organizational measures to ensure a level of security appropriate to the risk (Article 32 GDPR).

Therefore, it cannot be understood that these documents indicate that GLOVOAPP has adequately analyzed, when determining the means of processing or during its execution, the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of individuals, in order to adopt the corresponding measures.

Seventhly, the Guidelines 4/2019 on Article 25 Data Protection by Design and by Default Version 2.0, adopted by the European Data Protection Board on October 20, 2020, state that:

“(…) Data protection by design must be carried out ‘at the time of determining the means of processing.’

(…)

The ‘moment of determining the means of processing’ refers to the period during which the controller is deciding how the processing will be carried out and how it will occur, as well as the mechanisms that will be used to carry out such processing. In the process of making such decisions, the data controller must evaluate the appropriate measures and safeguards to effectively apply the principles and rights of the data subjects in the processing, and take into account elements such as risks, the state of the art, and the cost of implementation, as well as the nature, scope, context, and purposes. This includes the moment of acquiring and implementing software and hardware and data processing services.

(…)

Once processing has begun, the controller has a permanent obligation to maintain data protection by design and by default, that is, to effectively and continuously apply the principles in order to protect rights, stay updated on the state of the art, reevaluate the level of risk, etc. The nature, scope, and context of the processing operations, as well as the risk, may change during the course of processing, which means that the controller must reevaluate its processing operations by periodically reviewing and assessing the effectiveness of the measures and safeguards it has decided to adopt.

The obligation to maintain, review, and update the processing operation, as necessary, also applies to existing systems. This means that legacy systems designed before the entry into force of the GDPR must be reviewed and maintained to ensure that measures and safeguards are applied that effectively implement the principles and rights of the data subjects, as explained in these Guidelines.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/74

(…)

The data controller must determine in advance the specified, explicit, and legitimate purposes for which personal data is collected and processed. The measures must be adequate to ensure, by default, that only personal data necessary for each specific purpose of processing is processed. (…)

The same considerations apply to the organizational measures supporting the processing operations. They must be designed to process, from the outset, only the minimum amount of personal data necessary for the specific operations. This must be particularly taken into account when assigning access to the data to individuals with different roles and different access needs.

The “appropriate technical and organizational measures” in the context of data protection by default are understood as explained in section 2.1.1, but specifically with respect to the application of the data minimization principle. (…)

In particular, the aforementioned Guidelines state that:

“(…) Recital 78 states that one of the measures of DPD could consist of allowing the data controller to ‘create and improve security elements.’ Along with other DPD measures, Recital 78 points out that

data controllers have the responsibility to continuously assess whether they are using appropriate processing means at all times and whether the chosen measures truly mitigate existing vulnerabilities. Furthermore, data controllers must carry out periodic reviews of the information security measures surrounding and protecting personal data, as well as the procedure for managing breaches. Essential elements by design and by default regarding integrity and confidentiality may include the following:

(...)

- Risk analysis: Risks to the security of personal data will be evaluated considering how they affect individuals' rights, and identified risks will be mitigated. For use in risk assessment, a comprehensive, systematic, and realistic 'threat model' will be developed and maintained, along with an analysis of the attack surface of the software designed to reduce attack vectors and opportunities to exploit weaknesses and vulnerabilities.
- Security by design: Security requirements will be considered as early as possible in the design and development of the system and will be integrated and tested continuously.
- Maintenance: Periodic reviews and tests of software, hardware, systems, and services, etc., will be conducted to detect vulnerabilities in the supporting processing systems.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/74

- Access control management: Only authorized personnel who need to access the personal data necessary for their processing tasks shall have access, and the responsible party must differentiate the access privileges of authorized personnel.
 - o Access limitation (agents): Data processing will be configured in such a way as to minimize the number of individuals who need to access personal data to perform their functions, and access will be limited accordingly.
 - o Access limitation (content): In the context of each processing operation, access will be limited exclusively to those attributes of each dataset that are necessary to carry out that operation. Furthermore, access to data belonging to those data subjects who fall within the scope of the respective employee's responsibilities will be restricted.
 - o Access segregation: Data processing will be configured so that no individual needs to access all data of a data subject, let alone all personal data of a specific category of data subjects. (...)

In this case, the appellant began its activity in 2015. In the risk analysis document it prepared in 2017, which is provided as DOCUMENT 30 along with the written allegations to the initiation agreement of PS/00020/2021, described as "Pre-impact assessment checklist," it has been established that it merely verified whether or not a data protection impact assessment was necessary. And in the risk analysis document that the appellant prepared in 2019, obtained during the on-site inspection conducted by this Agency, it has been established that it is limited to analyzing whether (in its opinion) an impact assessment is necessary based on the provisions of Article 35 of the GDPR and whether the company carries out any of the activities listed on the list that this Agency had published on its website. However, in neither case has it been established that the appellant evaluated when determining the processing means "the appropriate measures and guarantees to effectively apply the principles and rights of the data subjects in the processing" nor that once processing had commenced, it had reevaluated "its processing operations by periodically reviewing and assessing the effectiveness of the measures and guarantees it decided to adopt."

Moreover, in this specific case, the appellant had commenced its activity before the GDPR came into effect, so it is particularly applicable that "this means that legacy systems designed before the GDPR came into effect must be reviewed and maintained to ensure that measures and guarantees are applied that effectively uphold the principles and rights of data subjects, as explained in these Guidelines."

The fact that the system of permissions for personnel who could access the data of couriers across Europe was only changed in mid-2020 implies that for years the permission system was not reviewed,

nor were the potential risks to the rights and freedoms of data subjects analyzed, nor were the necessary measures adopted to ensure compliance with the processing principles established by the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
24/74

Furthermore, regarding that "The measures must be adequate to ensure, by default, that only personal data necessary for each specific purpose of processing is processed," the aforementioned Guidelines emphasize that "This must be particularly taken into account when assigning access to data to individuals with different roles and different access needs." It is also insisted upon the "responsibility to continuously assess whether appropriate processing means are being used at all times and whether the chosen measures truly mitigate existing vulnerabilities," which has not been carried out in the present case.

A proper risk analysis has not been conducted, which would develop "a comprehensive, systematic, and realistic 'threat model' and an analysis of the attack surface of the software designed to reduce attack vectors and opportunities to exploit weaknesses and vulnerabilities."

Nor has access control management been properly executed, especially regarding access segregation, as the appellant itself acknowledges that all customer service or delivery personnel could access all personal data of the delivery personnel from the European Union.

In light of the above, it can be stated that, from the instruction of the procedure, it was found, among other things, the lack of a system of access permissions to the personal data of the delivery personnel that took into account from the outset the risks and freedoms for their rights, which denotes a reactive rather than proactive attitude focused from the design. In this regard, this Agency considers that the appellant has not been as diligent as it should have been when configuring the permission system for the customer service or delivery personnel. The fact that the organizational structure of the company has varied over time does not prevent the company from having to foresee at all times the appropriate measures to ensure compliance with the GDPR and protect the rights and freedoms of the delivery personnel.

Furthermore, Recital 78 of the GDPR states:

"The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure compliance with the requirements of this Regulation. In order to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that particularly comply with the principles of data protection by design and by default. Such measures could consist, among others, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, providing transparency regarding the functions and processing of personal data, allowing data subjects to monitor the processing of data, and enabling the data controller to create and improve security elements. When developing, designing, selecting, and using applications, services, and products that are based on the processing of personal data or that process personal data to fulfill their function, producers of products, services, and applications should be encouraged to take into account the right to data protection when developing and designing these products, services, and applications, and that they should be...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
25/74

ensure, with due regard to the state of the art, that those responsible and those in charge of processing are in a position to fulfill their obligations regarding data protection. The principles of data protection by design and by default must also be taken into account in the context of public contracts." In particular, in light of Recital 78 of the GDPR, the principle of data protection by design is the key to

be followed by the data controller to demonstrate compliance with the GDPR, as “the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default.”

The principle of privacy by design is a demonstration of the shift from reactivity to proactivity and a direct manifestation of the risk-based approach imposed by the GDPR.

Part of the proactive responsibility requires that, from the earliest stages of planning a processing operation, this principle must be considered: the data controller, from the moment a potential processing of personal data is designed and planned, must determine all the elements that make up the processing, in order to effectively apply the principles of data protection, integrating the necessary safeguards in the processing with the ultimate aim of, in compliance with the provisions of the GDPR, protecting the rights of the data subjects.

Thus, regarding the risks that may be present in the processing, the data controller will carry out an analysis and detection of risks throughout the entire data processing cycle, with the primary and ultimate aim of protecting the rights and freedoms of the data subjects, and not only when the processing actually takes place. This is expressed in the aforementioned Guidelines 4/2019 when they state that:

“Considering the PDDD from the outset is crucial for the correct application of the principles and for the protection of the rights of the data subjects. Furthermore, from a cost-effectiveness perspective, it is also in the interest of data controllers to take the PDDD into consideration as early as possible, as it may later prove difficult and costly to introduce changes to already formulated plans and designed processing operations.”

To this end, when designing the processing, it must refer to the principles set out in Article 5 of the GDPR, which will serve to assess the effective compliance with the GDPR. Thus, the aforementioned Guidelines 4/2019 state that “To make the PDDD effective, data controllers must apply the principles of transparency, lawfulness, fairness, purpose limitation, data minimization, accuracy, storage limitation, integrity and confidentiality, and proactive responsibility. These principles are set out in Article 5 and Recital 39 of the GDPR.”

The AEPD Privacy by Design Guide states that “Privacy by design (hereinafter, PbD) involves using a risk management and proactive responsibility-oriented approach to establish strategies that incorporate privacy protection throughout the entire lifecycle of the object (whether it is a system, hardware or software product, service, or process). The lifecycle of the object refers to all the stages it goes through, from its conception.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/74

until its withdrawal, passing through the phases of development, production, operation, maintenance, and withdrawal.”

The Guide states that “Privacy must be an integral and inseparable part of systems, applications, products, and services, as well as of business practices and processes of the organization. It is not an additional layer or module that is added to something pre-existing, but must be integrated into the set of non-functional requirements from the very moment it is conceived and designed (...) Privacy is born in the design, before the system is operational, and must be guaranteed throughout the entire data lifecycle.”

Therefore, privacy by design, an obligation of the data controller that arises before the system is operational, is not a patch that is applied to a system built with disregard for the GDPR. Linked to the establishment of a true culture of data protection within the organization, it also implies, due to proactive responsibility, the ability to document all decisions made with a “privacy design thinking” approach, demonstrating compliance with the GDPR in this aspect as well.

The risk-based approach refers directly and immediately to a preventive system aimed at visualizing, regarding the processing of personal data, the risks to the rights and freedoms of individuals.

Therefore, other risks to which the organization may be subjected and that affect its business scope

must be excluded from the data protection risk-based approach.

In relation to the risks to the rights and freedoms of individuals, risks must be identified, their impact evaluated, and the likelihood of their materialization assessed. Thus, it is not the data that is protected, but the individuals behind it.

In the present case, in the risk analyses of GLOVOAPP from 2017 and 2019, it is observed that both aim simply to conclude that it was not necessary to carry out a data protection impact assessment, but do not guarantee the Fundamental Right to Personal Data Protection of the couriers; their rights and freedoms are not protected, which is the ultimate goal pursued by the GDPR through data protection by design. Therefore, it is not a document conceived for compliance with the principle of proactive responsibility (Article 5.2 GDPR), as it should have started from an adequate risk analysis that led to the adoption of measures for the protection of rights and freedoms, always based on the design of the processing. From this perspective, in the aforementioned Privacy by Design Guide of the AEPD, various guidelines are established, which are not fulfilled in the present case:

"Any system, process, or infrastructure that is going to use personal data must be conceived and designed from scratch by identifying, a priori, the possible risks to the rights and freedoms of the data subjects and minimizing them so that they do not materialize into harm. A PbD policy is characterized by the adoption of proactive measures that anticipate threats, identifying the weaknesses of the systems to neutralize or minimize risks instead of applying corrective measures to resolve security incidents once they have occurred. That is to say, PbD avoids...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
27/74

the "remediation policy" and anticipates the realization of the risk event."

Privacy by Default:

"Privacy by Design (PbD) aims to provide the user with the highest level of privacy given the state of the art and, in particular, that personal data is automatically protected in any system, application, product, or service. The default settings must be established from the design phase at a level that is as respectful as possible in terms of privacy. In the event that the subject does not take any configuration action, their privacy must be guaranteed and remain intact, as it is integrated into the system and configured by default.

Privacy Embedded in the Design Phase:

"Privacy must be an integral and inseparable part of systems, applications, products, and services, as well as of the business practices and processes of the organization. It is not an additional layer or module that is added to something pre-existing, but must be integrated into the set of non-functional requirements from the very moment it is conceived and designed. To ensure that privacy is taken into account from the early stages of design, the following must be done:

- Consider it a necessary requirement in the lifecycle of systems and services, as well as in the design of the organization's processes.
- Conduct a risk analysis for the rights and freedoms of individuals and, where applicable, impact assessments related to data protection, as an integral part of the design of any new processing initiative.
- Document all decisions made within the organization with a "privacy design thinking" approach.

Respect for Users' Privacy, Maintaining a User-Centered Approach:

"Without overlooking the legitimate interests pursued by the organization with the data processing it carries out, the ultimate goal must be to guarantee the rights and freedoms of the users whose data is being processed, so any measures adopted must aim to ensure their privacy. This implies designing processes, applications, products, and services 'with the user in mind,' anticipating their needs. The user must have an active role in managing their own data and in controlling how others manage it. Their inaction must not undermine privacy, reiterating one of the principles already mentioned that advocates for a default privacy setting that offers the highest level of protection."

Thus, the access permission system for the personal data of delivery personnel requires, in terms of

data protection, a proper analysis of the risks to the rights and freedoms of the delivery personnel, adequate planning, the establishment of security measures to prevent risks, maintenance, updating, and control of those measures through continuous risk review, including demonstration of compliance (observance of the principle of proactive responsibility), especially in the present case that concerns us, in relation to appropriate security measures. This is to ensure that the Fundamental Right

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/74

regarding the Protection of Data of the delivery personnel, which includes the effective protection of personal data by the interested parties, as well as ensuring the security of customers' personal data effectively and, in particular, that this personal data could not be accessible by personnel for whom such access was not necessary. Compliance with this obligation imposed by the GDPR on the data controller is achieved through privacy by design.

Thus, upon examining the permission system of the customer service or delivery personnel known as "UE User Access," it has been found that it did not comply with the provisions of the GDPR and was not focused on the risks to the rights and freedoms of customers, which shows that the obligation set forth in Article 25 of the GDPR regarding the design and integration of data protection in the aforementioned permission system has not been fulfilled.

Finally, regarding the aforementioned DOCUMENT 1 that accompanies this appeal for reconsideration, it is dated September 23, 2020, that is, months after the permission system of the appellant was modified. Furthermore, the appellant itself indicates that it could have submitted it earlier, so by virtue of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, it will not be taken into account for the resolution of this appeal.

SECOND-. NULLITY OF THE SANCTIONING RESOLUTION DUE TO THE ABSENCE OF THE NECESSARY ELEMENTS TO CONSIDER THAT AN INFRINGEMENT EXISTS.

2.1 Absence of the subjective elements of the infringement. Nullity of Sanction.

The appellant argues that the fundamental elements and necessary requirements to impose a sanction in the case in question are not present.

It insists that the principles governing the sanctioning power of the Administration must generally be those of Administrative Sanctioning Law and, in particular, "the principles of legality, typification, responsibility, proportionality, and non-concurrence."

It argues that Law 40/2015, of October 1, on the Legal Regime of the Public Sector (hereinafter, the "LRJSP") establishes that an administrative infringement consists of the action, understood in a broad sense as any act - or omission - of individuals aimed at producing a result and that the Legislator itself has typified as an infringement.

According to the above, in order to be faced with an infringement in the area of personal data protection, there must have been a fraudulent or negligent action or omission with any degree of negligence.

And this means that the responsible subject could have been required, at the very least, to have acted differently.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/74

It argues that the subjective elements of the type can be defined as the different degrees of voluntariness or, at the very least, non-observance of due diligence; with fraud being the clear exponent of voluntariness in the commission of the typical action and simple negligence being the conduct lacking the necessary care in fulfilling obligations.

Thus, it is up to the competent authority to examine whether the conduct under analysis is fraudulent

or negligent, as this assessment is essential to impose a sanction since these are constitutive elements of the administrative infringement.

In support of its argument, the appellant cites the paragraphs it deems most representative from the Judgment of October 13, 2005, of the National Court.

It argues that it is precisely the analysis of culpability that differentiates a system of objective liability, in which sanctions are imposed solely based on the result, from one based on the principle of culpability. And that the Sanctioning Resolution disregards one of the essential elements when imposing a sanction, such as the examination of culpability.

Therefore, it must be taken into account that the Administration should have carried out this analysis and thus, since no intent to infringe by Glovo could be appreciated and the assessment of such intent as an essential element of the administrative infringement has been disregarded, the imposition of a sanction would be vitiated by nullity.

The appellant argues that before a possible sanction of 550,000 euros, a much more diligent analysis of the conduct should have been carried out, so the sanction applied to Glovo should be declared null and void due to lack of motivation.

In this regard, this Agency wishes to point out that a detailed examination of culpability has been carried out in the Sanctioning Resolution, through at least 9 pages, dedicated to responding to points 3.4, 5.1, and 5.3 of the allegations made regarding the initiation agreement of the sanctioning procedure, in which it is concluded that the conduct of the appellant has been negligent, which is why the referenced infringements have been attributed to it.

Moreover, it is only necessary to reiterate what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

In this sense, this Agency considers that the appellant did not act diligently.

Denying the occurrence of negligent conduct by the appellant would be equivalent to acknowledging that its conduct - by action or omission - has been diligent.

Obviously, this perspective of the facts is not shared, as the lack of due diligence has been established.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
30/74

This Agency reiterates that throughout the present procedure it has been established that the access permission system for the delivery personnel, instituted by the appellant, did not initially comply with the principles and obligations set forth by the GDPR, given that the company did not conduct a prior analysis of the processing that adequately assessed the possible implications for the rights and freedoms of the data subjects and determined, based on this, the appropriate measures for the access permission management system. On the contrary, the appellant did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were mere "patches" to the system, solving problems as they arose in accordance with changes in the organizational structure, as the appellant has stated in its allegations during the sanctioning procedure that is the subject of this appeal.

Due to the importance of the protected legal interest, the appellant was obliged to find organizational solutions that did not pose a greater risk to the rights and freedoms of its delivery personnel and that guaranteed data security, regardless of the size of its organization or the number of employees it had, since these risks were those that needed to be taken into account regardless of the number of delivery personnel at any given time.

The access permission system for the delivery personnel's data was not configured in the initial stages with consideration of the possible risks to the rights and freedoms of its delivery personnel, nor was it configured in such a way that, by default, the delivery personnel's data would not be accessible unless necessary for the purpose. The appellant should have ensured that, by default, access to the delivery personnel's data was limited to the necessary geographical scope, in compliance with Article 25.2 of

the GDPR.

Having established the above, it can be affirmed that, from the instruction of the procedure, it was also found, among other things, the lack of a mechanism for access permissions to the personal data of the delivery personnel that prevented users from accessing data that was not necessary and that guaranteed data security, as required by Article 32 of the GDPR.

Likewise, the fact that the appellant subsequently implemented modifications to the existing technical or organizational measures corroborates that those other measures did not provide adequate security.

Regarding the infringement of Article 13 of the GDPR, this Agency considers that the appellant should have been diligent in conducting a prior and concomitant analysis of the processing, in order to establish the information that should be provided to the delivery personnel about the "excellence score" system.

Had the appellant acted diligently, it would have carried out the necessary checks and would have verified that automated individual decisions were being made as per Article 22 of the GDPR and that, therefore, the delivery personnel should have been informed of its existence, in addition to providing all the information required by Article 13 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
31/74

2.2. Lack of evidence that undermines the presumption of innocence of Glovo. Nullity of sanction

The appellant argues that for the imposition of any administrative sanction, the existence of conduct constituting an administrative infraction is a prior and inescapable requirement.

And that the Administration cannot impose sanctions without sufficiently proving the culpability of the sanctioned subject, that is, the existence of bad faith in their conduct. Consequently, it is clear that the burden of proof regarding the culpability of the subject lies with the Administration, which must be substantiated by any means admitted in law.

However, in the present case, Glovo asserts that there is absolutely no evidentiary element that allows for the consideration of the destruction of the presumption of innocence, which, within the administrative-sanctioning scope, is fully applicable to the relationships between the Administration and the administered, as recognized by countless judicial resolutions across all hierarchical and territorial levels.

It cites, for example, the Judgment of the High Court of Justice dated June 10, 1994, and the Judgment of the Supreme Court dated December 26, 1983 (RJ 1983\6418).

The appellant argues that the Sanctioning Resolution of the AEPD must require more than a mere mention of the legal provisions. And that, in the present case, the Sanctioning Resolution merely reviews the background of the file but cannot in any way assert that we are facing an intentional infringement of data protection regulations by Glovo.

The main objective of the sanctioning procedure must be, in Glovo's opinion, precisely not to remain at what has already been indicated in the procedure, but to attempt to break the presumption of innocence that assists every obligated party by seeking the intentional element in their actions, the subjective element of the administrative offense through evidentiary activity that can be considered sufficient. However, in the present case, as no evidentiary activity has been carried out, there is no evident evidence of charges in said Sanctioning Resolution that would allow for the understanding that there is culpability in Glovo's conduct.

For all the arguments presented, the appellant requests that the full nullity of the agreement imposing the sanctions on Glovo in the Sanctioning Resolution of the AEPD be declared, as it was issued with a total absence of evidentiary elements of culpability and, consequently, with a violation of the fundamental right to the presumption of innocence enshrined in the Spanish Constitution.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution subject to this appeal.

Firstly, this Agency wishes to point out that there is ample evidence of the behavior of the appellant, all of which is documented in the file.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
32/74

not only have all the evidence collected during the on-site inspection been gathered, but also all the information provided by the appellant through their responses to the information requests from this Agency and their allegations regarding the initiation agreement of sanctioning procedure number PS/00020/2021, as well as the allegations to the proposed resolution of the aforementioned sanctioning procedure, along with the documentation accompanying them, as well as the allegations to the initiation agreement of the present sanctioning procedure. All of this is as recorded in the proven facts of the aforementioned Sanctioning Resolution.

Secondly, this Agency wishes to emphasize that it does not consider that the appellant has deliberately infringed data protection regulations, but rather that it believes that the appellant has not acted with the due diligence that should have been exercised, given the continuous processing of personal data that was being carried out.

Thirdly, the following infringements were attributed to the appellant:

- An infringement of Article 13 of the GDPR for failing to adequately inform the couriers about the making of automated individual decisions (through the use of the “excellence score” system): Throughout the sanctioning procedure, it has been duly established that the appellant made such decisions and did not adequately inform its couriers in the relevant documents.
- The infringement of Articles 25 and 32 of the GDPR is also attributed to them: In this case, it has been duly established throughout the sanctioning procedure that the appellant had implemented a system of access permissions to the couriers' data that did not comply with the requirements of Article 32, as it granted access to data that was not necessary for the purposes granted. Furthermore, it did not act with diligence in conducting an adequate analysis prior to the initiation of processing regarding the information of the couriers that needed to be provided to users as necessary for achieving the purposes and which should have been limited by default.

For all the above reasons, this allegation is dismissed.

2.4. Absence of the principle of legality and presumption of innocence. Nullity of sanction

The appellant alleges the non-existence of the behaviors considered as infringements for which they are sanctioned administratively. They argue that this should have led the AEPD to archive the sanctioning actions against Glovo again, since, otherwise, it would result in a flagrant violation of the principle of legality that arises from the applicable regulations.

The appellant indicates that the legal system protects individuals in the sanctioning procedure by requiring that the administrative bodies responsible for promoting sanctioning actions only consider as infringements those behaviors that adequately fit the definitions explicitly provided.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
33/74

establish legal norms. Thus, the first section of Article 129 of the LRJSP establishes the following:

“Article 27. Principle of specificity.

1. Only violations of the legal order that are provided for as such violations by a Law constitute administrative infractions, without prejudice to the provisions for Local Administration in Title XI of Law 7/1985, of April 2.”

The appellant argues that the same LRJSP establishes that the starting point of any action aimed at establishing responsibilities for the commission of administrative infractions must be to consider that, unless proven otherwise, the administered party has not incurred in the types declared as such

infractions. And that this is what is known as the principle of presumption of innocence, which is fully consistent with the fact that the Administration is obliged to carry out the investigative activity to verify whether a specific conduct falls under an infringing type.

It cites, regarding the presumption of innocence, Law 39/2015, which also governs this principle in the sanctioning procedure.

It also cites, regarding the importance of the administrative procedure respecting the principle of specificity, the Judgment of the Supreme Court of June 2, 2010, Administrative Litigation Chamber, Section 4.

The appellant indicates that, with respect to the principle of presumption of innocence in the context of the sanctioning administrative power, the jurisprudence has also been unequivocal in requiring administrative bodies to strictly respect and submit to it. Thus, from an early—and consolidated—doctrine, the Constitutional Court has consistently declared that the principle of presumption of innocence fully subjects the administrative sanctioning power. As an example, it cites—among others—the Judgment of the Constitutional Court 13/1982, of April 1. It also cites the Supreme Court in its Judgment of February 1994, Administrative Litigation Chamber, Section 7. The appellant believes that it has been sanctioned for the commission of facts whose existence the AEPD has not been able to prove. And that the evidence contained in the Administrative File, far from proving the alleged facts, only demonstrates the strictest compliance with the applicable regulations. Likewise, the appellant understands that it has been sanctioned for the commission of alleged facts by the Agency that do not fit the infringing type.

For all the arguments presented, the appellant considers that there is a total absence of evidentiary elements of guilt and, consequently, a violation of the fundamental right to the presumption of innocence enshrined in the Spanish Constitution.

And that it is appropriate to declare the nullity of the Sanctioning Resolution based on the provisions of Article 47 of Law 39/2015, as it violates the principles of specificity and presumption of innocence, in accordance with Article 24 of the Spanish Constitution.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/74

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

In this regard, this Agency wishes to insist that the following infringements were attributed to the appellant:

- An infringement of Article 13 of the GDPR for failing to adequately inform the couriers about the making of automated individual decisions (through the use of the “excellence score” system):

Throughout the sanctioning procedure, it has been duly evidenced that the appellant made such decisions and did not adequately inform its couriers in the relevant documents.

- It is also charged with the infringement of Articles 25 and 32 of the GDPR: In this case, it has been duly evidenced throughout the sanctioning procedure that the appellant had implemented a system of access permissions to the couriers' data that did not comply with the requirements of Article 32, as it granted access to data that was not necessary for the purposes granted. Furthermore, it did not act diligently in conducting an adequate analysis prior to the commencement of processing regarding the information of the couriers that should be provided to users as necessary for achieving the purposes and which should be limited by default.

For all the above, this allegation is dismissed.

THIRD-. PRESCRIPTION OF THE SERIOUS INFRINGEMENT OF ARTICLES 25 AND 32 OF THE GDPR DUE TO THE INAPPLICABILITY OF ADDITIONAL PROVISION 4 OF ROYAL DECREE 463/2020.

3.1. Preliminary Issues

The appellant alleges that the starting point for the prescription period of the infringement for violation of Articles 25 and 32 of the GDPR should be set on May 18, 2020, the date on which the allegedly

infringing conduct ceased with the implementation of the “system with access to the couriers' data according to the permissions enabled by countries and/or cities (city group permission).” Considering that the prescription period was two (2) years, the end date on which this prescription of the infringement would have occurred would be May 18, 2022. Thus, the AEPD initially agreed with Glovo, as stated on page 59 and following of the Sanctioning Resolution that is the subject of this appeal for reconsideration.

However, the same Sanctioning Resolution, on pages 94 and following, states that at that time, Additional Provision 4 of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19 (hereinafter “RD 463/2020”), was in force, which established the suspension of the prescription and expiration periods of “any actions and rights.” For this, the AEPD refers to various judicial resolutions that would support the application of this Additional Provision 4 of RD 463/2020 to the prescription period of administrative infringements and, consequently, to those from which the aforementioned Sanctioning Resolution arises.

If that Additional Provision 4 were applicable, the starting point would not have begun until June 4, 2020, the date on which that suspension ceased to be in force. Thus, the end date of the prescription of the infringement would have occurred on June 4, 2022. However, the draft agreement to initiate PS/209/2022 was notified to GLOVO on May 27, 2022, before the prescription of the infringement had occurred.

In this regard, this Agency wishes to point out that it agrees with the appellant that the starting point for the prescription period of the infringement for non-compliance with Articles 25 and 32 of the GDPR should be set on May 18, 2020, with the end date of the two-year prescription period being May 18, 2022. And that, as established by Article 95.3 of the LPACAP, the expiration of procedure PS/00020/2021 did not interrupt the prescription period of the infringement in question.

However, Article 64 of the LOPDGDD “Form of initiation of the procedure and duration” in its section 2 states:

“(…)

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it will be initiated by an initiation agreement adopted on its own initiative or as a result of a complaint.

“(…)

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure will be initiated by the adoption of the draft initiation agreement of the sanctioning procedure, which will be formally communicated to the interested party for the purposes provided in Article 75 of this organic law.”

In this sense, Article 75 “Interruption of the prescription of the infringement” of the LOPDGDD establishes:

“(…)

When the Spanish Agency for Data Protection holds the status of the main supervisory authority and the procedure provided in Article 60 of Regulation (EU) 2016/679 must be followed, the formal knowledge by the interested party of the draft initiation agreement submitted to the interested supervisory authorities will interrupt the prescription.”

For its part, the fourth Additional Provision “Suspension of prescription and expiration periods” of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, provided that:

“The prescription and expiration periods of any actions and rights will be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

36/74

And Article 10 “Statutes of limitations and expiration of rights and actions suspended by Royal Decree 463/2020, of March 14” of Royal Decree 537/2020, of May 22, which extends the state of alarm

declared by Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19 established that:

"Effective from June 4, 2020, the suspension of the statutes of limitations and expiration of rights and actions will be lifted."

In the present case, it is a sanctioning procedure in which the AEPD holds the status of the main supervisory authority, due to the cross-border processing carried out by a company (the appellant) that has its main establishment in Spain and provides services to several countries in the European Union, thus the rules established in Article 60 of the GDPR apply. Therefore, it is the adoption of the draft agreement to initiate the sanctioning procedure that initiates the present procedure and interrupts the statute of limitations for the infringement upon the formal knowledge of the draft agreement to initiate by the appellant.

According to the file, the draft agreement to initiate the sanctioning procedure in question was adopted on May 18, 2022, and was notified to the appellant on May 27, 2022.

Therefore, considering that the dies ad quem of the two-year statute of limitations was May 18, 2022, but taking into account that due to the exceptional situation caused by COVID-19, both the statutes of limitations and expiration were suspended from March 14, 2020, until June 1, 2020, the infringement of Articles 25 and 32 of the GDPR was not time-barred, since the dies ad quem of the two-year statute of limitations for the infringement of Articles 25 and 32 of the GDPR would have ended on June 4, 2022. Given that the draft agreement to initiate the sanctioning procedure was notified to the appellant on May 27, 2022, such infringement was not time-barred.

For all the above reasons, this allegation is dismissed.

3.2. Irrelevance of the judicial precedents cited by the sanctioning resolution as they do not refer to the issue under discussion.

The appellant argues that, first of all, the crux of the matter under discussion is to determine whether the Additional Provision 4 of RD 463/2020 has suspended the statute of limitations for administrative infringements and, in particular, the alleged infringement of Articles 25 and 32 of the GDPR that the aforementioned Sanctioning Resolution is based on. And that there is no consolidated ruling from the Supreme Court that has resolved this issue.

In this regard, this Agency wishes to point out that there is indeed a ruling from the Supreme Court, which was already cited in the Sanctioning Resolution in question.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

37/74

In this appeal, the Judgment No. 1.509/2022 of November 16, from the Administrative Litigation Chamber, Section Five, which is relevant here, states:

"In what is now important, the issue of cassational interest raised relates to the content of the third and fourth additional provisions. It is therefore appropriate to reproduce the content of the aforementioned Additional Provisions:

"Third Additional Provision. Suspension of administrative deadlines.

1. Terms are suspended and deadlines for the processing of procedures of public sector entities are interrupted. The counting of deadlines will resume at the moment the present royal decree ceases to be in force or, where applicable, its extensions.

2. The suspension of terms and the interruption of deadlines will apply to the entire public sector defined in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

3. Notwithstanding the foregoing, the competent authority may agree, through a reasoned resolution, the strictly necessary management and instruction measures to avoid serious harm to the rights and interests of the interested party in the procedure, provided that they express their agreement, or when the interested party expresses their agreement not to suspend the deadline.

4. This provision will not affect the procedures and resolutions referred to in the first section when these relate to situations closely linked to the justifying facts of the state of alarm."

"Fourth Additional Provision. Suspension of prescription and expiration deadlines.

The deadlines for the prescription and expiration of any actions and rights will be suspended during the period of validity of the state of alarm and, where applicable, of the extensions that may be adopted." From the wording of the Third Additional Provision, it can be deduced that the general rule established as a necessary consequence of the declaration of the state of alarm is the suspension of the deadlines established for the processing of procedures of public sector entities (which are those referred to in Article 2 of Law 40/2015).

However, it is important to clarify that, although the suspension is the general rule, the provision itself restricts the operability of this general rule in two ways: on one hand, by providing for its non-application to the procedures and resolutions mentioned in section 4; and, on the other hand, by allowing in its section 3 that the competent authority may agree, through a reasoned resolution, the strictly necessary management and instruction measures to avoid serious harm to the rights and interests of the interested party in the procedure, provided that they express their agreement, or when the interested party expresses their agreement not to suspend the deadline.

Moreover, when interpreting the precepts and provisions of the Royal Decree to determine the scope of the consequences of its potential non-compliance, it is essential to keep in mind the purpose pursued by it, which—as we have stated before—is the protection of legal certainty and the legitimate rights and interests of citizens.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

38/74

Therefore, the general rule that the suspension of processing deadlines is permissible does not mean that all possibilities for administrative action are prohibited while the state of alarm or its extensions are in effect. The regulation does not establish the paralysis of administrative activity or, more precisely, the paralysis of the activity of public sector entities (nor does it refer to the paralysis of the activity of the country's judicial bodies). It should be taken into account that this consequence, apart from not aligning with the purpose pursued by the regulation, could potentially generate serious harm to the general interest and to the specific rights and interests of citizens.

For this reason, it can be inferred that what is truly intended with the aforementioned Royal Decree is that, in order to protect the rights of citizens, the effectiveness of those administrative actions—which should not necessarily be deemed invalid for having been carried out during that period—will be suspended, meaning that their effectiveness will be delayed until the state of alarm ceases—whose duration was set at fifteen calendar days by Article 3 of the Royal Decree—or its extensions, at which point the counting of deadlines will resume.

This same reasoning applies to the Fourth Additional Provision, which states that the deadlines for prescription and expiration of any actions and rights will be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted.

Therefore, the notification of a sanctioning resolution issued prior to the declaration of the state of alarm, which was carried out during the validity of the state of alarm or its extensions, cannot be deemed—principally—invalid, without prejudice to the fact that its effectiveness will be delayed until the moment the state of alarm or its extensions cease, from which point the counting of deadlines will resume. And, in line with what has been stated, the expiration period for any actions or rights will also be suspended during that period of validity of the state of alarm or its extensions.

Consequently, we can respond to the question of casational interest raised in the admission order in the following terms:

(i) The Third Additional Provision of Royal Decree 463/2020 must be interpreted to mean that the notification of a sanctioning resolution issued prior to the declaration of the state of alarm, and carried out during its validity, should be deemed—principally—valid, without prejudice to the fact that its effectiveness will be delayed until the moment the state of alarm or its extensions cease, from which point the counting of deadlines will resume.

(ii) And, in line with what has been stated, the Fourth Additional Provision of the aforementioned Royal

Decree must be interpreted to mean that during the period of validity of the state of alarm or its extensions, the expiration period for any actions or rights will be suspended and, therefore, also for those referred to in the aforementioned notification.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
39/74

The appellant continues to argue that, to justify the application of Additional Provision 4 of RD 463/2020, the Sanctioning Resolution cites various judicial rulings that would supposedly support the position of the AEPD.

The appellant claims that the cited excerpt from the Judgment of the Superior Court of Justice of Aragon (Contentious-Administrative Chamber, Section 2), no. 290/2022, of October 14 (JUR 2022\376138) - see page 96 of the Sanctioning Resolution - refers to the expiration of the sanctioning procedure under Additional Provision 3 of RD 463/2020, and not to the statute of limitations for the infringement (which is also alleged and considered, but for other reasons unrelated to the application of RD 463/2020).

In this regard, this Agency wishes to recall the cited excerpt referred to by the appellant:

“(…)

And regarding the allegations of the party about the validity of the principles of operation of public administrations, the enabling of organizational measures for teleworking to facilitate the provision of services by public employees remotely, being extremely cautious in the case of notifications with suspension of deadlines, seeking, as far as possible, to avoid causing harm arising from confusing interpretations regarding this issue, and the party's mention of the actions taken by the Administration during the State of Alarm, it is sufficient to recall the situation that the country was experiencing at that time, with intense limitations on rights motivated by a serious health crisis that affected the entire Spanish society and hindered social and institutional activity, a situation in which it was necessary to approve regulations to address these difficulties, providing legal certainty in the relationships of citizens with Public Administrations. The suspension period, which lasted 78 days, protected citizens from the undesirable effects of possible deadlines lapsing and established the legal framework that should govern the statutes of limitations and expiration, a framework that we must understand as in force in the section we are examining regarding an allegation of expiration.” (the underlining is by the Agency)

In this sense, this Agency understands that the fact that a response was being given to an allegation regarding expiration does not prevent the same judgment from also referring to the statutes of limitations, due to the suspension of both limitation and expiration periods carried out by the aforementioned Royal Decree, motivated by the exceptional situation of “serious health crisis that affected the entire Spanish society and hindered social and institutional activity.”

The appellant also claims that the Judgment of the Superior Court of Justice of Madrid (Contentious-Administrative Chamber, Section 10), no. 68/2023, of January 17 (JUR 2023\51556), also refers to the application of Additional Provision 3 of RD 463/2020, without this ruling being extendable to the application of Additional Provision 4.

In this regard, this Agency wishes to recall the cited excerpt referred to by the appellant:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
40/74

"As observed by the State Attorney and although it may seem irrelevant, the appealed resolution incurs a material error. This is due to its statement that there were two failed attempts at notifying the expulsion. The truth is that, as the appellant himself admits and is evident from the file [folio 31], after a first attempt at notification on 7/6/21 when the appellant was absent, the notification took place on 8/6/21, with his signature recorded on the acknowledgment of receipt.

From that point, it must be taken into account that the initiation of the procedure occurs on 19/2/20 and that it becomes decisive for understanding whether the expiration period has elapsed, the effects granted to the suspension of deadlines established by the Third Additional Provision of Royal Decree 463/2020, of March 14, which declares the state of alarm for managing the health crisis situation caused by COVID-19, in relation to Article 9 of Royal Decree 537/2020, of May 22, which extends the state of alarm.

The thesis adopted by the Judgment is that such suspension cannot operate to the detriment of the administered. It interprets that the suspension implied an unfavorable extension for the citizen and contrary to Article 9.3 of the Constitution. For its part, the State Attorney rightly emphasizes that what the trial judge is actually doing is disregarding a provision with the rank and value of law without, as would be necessary, promoting the question of unconstitutionality under Article 163 of the Constitution. This is a matter on which this Chamber and Section have already had the opportunity to pronounce [among others, Judgment No. 776/2022, of October 3 (rec. 839/2021)]. As expressed therein, "it cannot be considered in a univocal and indisputable manner that the aforementioned Third Additional Provision is a sanctioning provision unfavorable or restrictive of individual rights, given that its objective is not to limit or restrict rights but to safeguard the right of citizens to interact with Public Administrations and the normal exercise by Public Administrations in their relations with citizens in light of the difficulties for the normal exercise of those rights and powers derived from the limitations on the freedom of movement of persons and the other exceptional measures contained in the Royal Decree-Law. The application of the suspension of administrative deadlines established in Royal Decree 462/2020, through the Third Additional Provision, is applicable to sanctioning procedures or restrictive of individual rights initiated before the declaration of the state of alarm and pending resolution at the time of the entry into force of the aforementioned legal norm, producing favorable effects for the affected citizens" [F.D. 2nd].

Consequently, due to the application of the Third Additional Provision of Royal Decree 463/2020, of March 14, it cannot be stated that the expiration of the expulsion file has occurred due to the notification of the expulsion resolution having taken place after six months from the date of initiation of that procedure.

It follows from the above the acceptance of the appeal and the consequent revocation of the Judgment. This, in turn, must translate into the dismissal of the appeal filed in the instance, confirming the challenged administrative action.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
41/74

In this regard, this Agency wishes to point out that this ruling was not cited in the allegations related solely to the statute of limitations for the infringement, but rather to specifically address the argument put forth by the appellant that such provision could not be applied because it would be contrary, among other things, to Article 9.3 of the Constitution concerning the non-retroactivity of unfavorable or restrictive sanctioning provisions regarding individual rights. This Agency referenced such ruling because, although it analyzes the Third Additional Provision of that Royal Decree, its conclusions could be extended to the Fourth Additional Provision of the Royal Decree in question, given that it cannot be interpreted that the Royal Decree constitutes an unfavorable or restrictive sanctioning provision regarding individual rights.

The appellant indicates that the reasoning of the previous rulings cited by the Sanctioning Resolution should not be understood as applicable to the case of Glovo, since it is not the same to understand that the time frame for processing procedures (whatever they may be) is interrupted, as it is to make an extensive interpretation of the terms "any actions and rights" included in the Fourth Additional Provision to encompass the statute of limitations for infringements in the case of suspension.

Therefore, the appellant explains that both provisions should not be confused, as while the Third Additional Provision deals with the interruption of time frames for processing procedures, the Fourth

Additional Provision refers to the suspension of the statute of limitations and expiration periods for any actions and rights.

Furthermore, it adds that this is affirmed by the Provincial Court of Badajoz (Section 2), in its Judgment No. 822/2021, of October 22 (JUR 2022\29414). According to this judicial body, they should be understood as fully differentiated cases:

“And the fourth additional provision of Royal Decree 463/2020, regarding the suspension of statute of limitations and expiration periods, is worded as follows: <>.

Well, this other norm only concerns the statute of limitations and expiration periods established for the exercise of rights, not the time frames for the duration of procedures. We are dealing with well-differentiated cases. It only reaches the substantive time frames for the exercise of rights. And there is no room for confusion, because the legislator himself, in the third provision, was kind enough to explicitly contemplate the suspension of administrative time frames.”

In this regard, this Agency agrees that the fourth additional provision of Royal Decree 463/2020 does not refer to the time frames for the duration of procedures, does not suspend administrative time frames, but rather that the statute of limitations for infringements that can be pursued through administrative means has been suspended.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
42/74

On the other hand, the appellant adds that regarding the Judgment of the Supreme Court (Contentious-Administrative Chamber, Section 5), no. 1509/2022, of November 16 (JUR 2022\360086), it is relevant to highlight that in it, the Supreme Court does not refer to the prescription of the infringement, but rather, again, to the expiration of the sanctioning procedure, and its reference to Additional Provision 4 only serves to affirm the interruption of the prescription period of the rights and actions granted by the notification of the sanctioning resolution, and not the prescription of the infringement itself considered.

In the words of the High Court:

“Therefore, the notification of a sanctioning resolution issued prior to the declaration of the state of alarm, which had been carried out during its validity or its extensions, cannot be deemed -in principle- invalid, without prejudice to the fact that its effectiveness may be delayed until the cessation of the state of alarm or its extensions, from which point the counting of the deadlines will resume. And, in line with what has been stated, also during that period of validity of the state of alarm or its extensions, the expiration period of any actions or rights will remain suspended. [...]

(ii) And, in line with what has been stated, the fourth additional provision of the aforementioned Royal Decree must be interpreted in the sense that during the period of validity of the state of alarm or its extensions, the expiration period of any actions or rights will remain suspended and, therefore, also of those to which the aforementioned notification referred.” (the emphasis is from Glovo)

In this regard, this Agency does not agree with the interpretation made by the appellant of this last judgment in question, as indicated in the aforementioned Sanctioning Resolution.

In any case, the judgment cited refers to a different factual scenario than the present one, since its object is the notification of a resolution of a procedure issued before the declaration of the aforementioned state of alarm and notified after its declaration; whereas in the present case it concerns the notification of an act issued once the state of alarm has ended and which initiates a sanctioning procedure, whose notification interrupts the prescription of the infringement in question, which is the issue at hand in the present appeal.

Given these circumstances, and taking into account all of the above, the appellant concludes the following:

I. The majority of the rulings cited in the Sanctioning Resolution do not resolve the controversial issue in this case: whether Additional Provision 4 of RD 463/2020 affected the prescription period of

administrative infringements.

II. Regarding this issue, there are only some rulings from individual bodies, of a contradictory nature, without it being a matter on which the Supreme Court has established a consolidated doctrine.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

43/74

In this regard, this Agency wishes to point out that in addition to the judgments cited by the appellant (Judgment No. 290/2022 of October 14 from the Superior Court of Justice of Aragon and Judgment of the Superior Court of Justice of Madrid, (Contentious-Administrative Chamber), No. 68/2023 of January 17, the latter only for the purpose of the allegation regarding the non-retroactivity of unfavorable or restrictive sanctioning provisions of individual rights), the Sanctioning Resolution subject to this appeal also cites three other judgments: Judgment No. 189/2021 of October 30, from the Contentious-Administrative Court No. 3 of Toledo and Judgment No. 401/2022 of July 14, from the Superior Court of Justice of Murcia, (Contentious-Administrative Chamber, Section 2), which are fully applicable to the present matter, in addition to Judgment No. 1,509/2022 of November 16 from the Supreme Court, Contentious-Administrative Chamber, Section Five.

In particular, this Agency highlights Judgment No. 189/2021 of October 30 from the Contentious-Administrative Court No. 3 of Toledo, which has understood that:

“3.- Prescription of the infraction.

(...)

Notwithstanding the above, in the present case, the special circumstances that occurred due to COVID must be taken into account, which led to the declaration of the state of alarm for the management of the health crisis situation caused by COVID-19 by Royal Decree 463/2020, of March 14, whose Additional Provision 4, "Suspension of prescription and expiration periods," stated that "The prescription and expiration periods of any actions and rights shall be suspended during the duration of the state of alarm and, where applicable, the extensions that may be adopted." However, Royal Decree 537/2020, of May 22, which extended the state of alarm, in its Article 9 stated that effective from June 1, 2020, the counting of administrative deadlines that had been suspended would resume or restart, and in its Article 10 that effective from June 4, 2020, the suspension of the prescription and expiration periods of rights and actions would be lifted.

In the case at hand, at the time the state of alarm was declared, the sanctioning procedure was not initiated, thus suspending the prescription period for the infraction from March 14, 2020, until June 4, 2020, so that having been committed on June 22, 2019, the prescription period for the infraction was suspended on March 14, 2020, and the aforementioned suspension was lifted on June 4, 2020, the date coinciding with the initiation agreement of the file, which concluded with the issuance of the Sanctioning Resolution of October 16, 2020, notified to the interested party on the 30th of the same month and year, it is considered that the infraction had not prescribed, thus the allegation made by the appellant in this regard falls away.”

This means that in the Sanctioning Resolution, four judgments were cited regarding the specific issue at hand, three of which have not been contested by the appellant, beyond the fact that in what is being appealed, this Agency does not share its criteria. Therefore, it is not the case that in the present instance “the majority of the rulings cited in the Sanctioning Resolution do not resolve the issue.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

44/74

"controverted in this case," but rather, almost all of these rulings would support the position of this Agency.

Finally, the appellant argues that "on this issue there are only some rulings from single-member bodies, of a contradictory nature, without it being a matter on which the Supreme Court has

established a consolidated doctrine." However, only one of the judgments cited by the Sanctioning Resolution is from a single-member body, while the other three are from collegiate bodies; in fact, they are two High Courts of Justice and one chamber of the Supreme Court.

For all the above reasons, this allegation is dismissed.

3.3. Application of the same principles of criminal law to administrative sanctioning law. The Additional Provision 4 of RD 463/2020 does not suspend the statute of limitations for crimes.

The appellant argues that in the criminal sphere, the various Provincial Courts have understood (based on the Constitutional Court Judgments No. 63/2005, of March 14, and No. 12/1991, of January 28) that the Additional Provision 4 of RD 463/2020 is not applicable to the statute of limitations for crimes, since what is subject to limitation is the crime itself, not the procedural action to prosecute these crimes.

In this regard, the Judgment of the Provincial Court of Murcia (Section 3) No. 101/2022, of February 18, 2022, issued in appeal No. 77/2021 (JUR 2022\141487), states that:

"However, the statute of limitations for the crime should not be confused with the statute of limitations for actions and rights referred to in RD 463/2020 of March 14, which declared the state of alarm for the management of the health crisis situation caused by COVID-19, as they are institutions of different legal nature. While it is true that the aforementioned regulation interrupted the limitation and expiration periods of any actions or rights as provided by the mentioned Additional Provision 4 of Decree 463/2020, it did not interrupt the limitation periods for crimes." (the emphasis is from Glovo)

In a similar vein, the appellant cites the SAP of Tarragona (Section 2) No. 134/2021, of April 9, 2021, issued in appeal No. 25/2021, which states that:

"Therefore, the Royal Decree that enables the state of alarm is only referring to the statute of limitations of 'any actions and rights,' that is, to the exercise of criminal action (whether by complaint and appearance or by private prosecution) without mentioning crimes and their sanctioning consequences. This leads us to consider that crimes (and therefore their statute of limitations) would be outside the general rule of suspension regulated by the indicated Royal Decree."

Finally, the appellant cites the SAP of Guadalajara (Section 1) No. 241/2022, of December 1, 2022, issued in appeal No. 818/2022 (JUR 2023\10815), which has resolved the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

45/74

"However, it is considered that the statute of limitations for the crime should not be confused with the statute of limitations for actions and rights referred to in Royal Decree 463/2020, of March 14, which declared the state of alarm for the management of the health crisis situation caused by COVID-19, as these are institutions of different legal nature. The fourth additional provision refers to the 'statutes of limitations and expiration of any actions and rights,' but the statute of limitations for the crime is not configured as a right of the party to exercise criminal action within a specific period, but rather as a power of the State to impose limits on the ius puniendi, which is linked to the eminently substantive or material nature of the institution of the statute of limitations for the crime, to the detriment of a procedural nature." (the emphasis is from Glovo)

Furthermore, the appealing party indicates that this interpretation regarding the non-application of the Fourth Additional Provision of Royal Decree 463/2020 to the statute of limitations for crimes was also upheld by the Attorney General's Office in its Report of June 3, 2020, from the Chief Prosecutor of the Technical Secretariat of the Attorney General's Office on the statute of limitations for crimes during the state of alarm.

"Thus, it is incontrovertible that it is impossible to apply the provisions contained in the Fourth Additional Provision of Royal Decree 463/2020, of March 14, regarding the suspension of the statutes of limitations and expiration for the exercise of actions and rights, to the statutes of limitations for crimes regulated by Article 131 of the Penal Code. For, in this latter case, what is prescribed is not the criminal action to pursue the crime but the crime itself." (the emphasis is from Glovo)

In this context, the appealing party explains that both criminal law and administrative sanctioning law are part of the State's ius puniendi. It cites, among others, the Judgment of the Constitutional Court

No. 18/1981, of June 8, as well as the Judgment of the Supreme Court (Contentious-Administrative Chamber, Section 5) No. 2118/1996, of April 9, issued in appeal No. 6373/1991 (RJ 1996\3375).

And this latter judgment has resolved the following:

"This Chamber, through reiterated jurisprudence, has maintained that the general theory of the illicit as a superconcept encompassing both criminal and administrative matters establishes that the sanctioning power of the Administration must be exercised in accordance with the essential principles inspiring the criminal order, since this power is theoretically supported by the denial of any ontological difference between administrative sanction and penalty.

The Constitutional Court has also declared in Judgments of January 21, 1987 (RTC 1987\2) and February 6, 1989 (RTC 1989\29) that the principles inspiring the criminal order are applicable with certain nuances to sanctioning Administrative Law, given that both are manifestations of the punitive order of the State, both in a material and procedural sense, and therefore, it is necessary for the imposition of a sanction to have a clear and individualized record of the authorship of the facts determining the sanction as well as the typified unlawfulness of the same and its culpable or intentional attribution." (the emphasis is from Glovo)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

46/74

The appellant argues that, if in the criminal sphere what is prescribed are the crimes themselves, not the actions to prosecute those crimes, the same conclusion should apply in the administrative sphere, where the infringements themselves are prescribed, not the "action" of the Administration to sanction these infringements. The appellant indicates that Article 30 of the LRJSP leaves no room for doubt, as, just as in the criminal sphere, it speaks of the "prescription period for infringements," not the prescription period for an action to sanction infringements.

"[...]

2. The prescription period for infringements shall begin to run from the day the infringement was committed. In the case of continuous or permanent infringements, the period shall begin to run from the end of the infringing conduct.

[....]"

The appellant explains that this same expression is used by Articles 72 to 74 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, the "LOPDGDD"), which provide that "the infringements shall prescribe after [...] years."

"Article 72. Infringements considered very serious.

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

[...]

Article 73. Infringements considered serious.

According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall prescribe after two years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

[...]

Article 74. Infringements considered minor.

The remaining infringements of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and shall prescribe after one year, and in particular, the following:

[...]"

The appellant argues that, given this, and despite the fact that there is currently no consolidated jurisprudence from the Supreme Court that establishes doctrine on this matter, it should be concluded that the prescription period for infringements has not been affected by Additional Provision 4 of RD 463/2020, since what is prescribed are the infringements themselves, not the actions to pursue them.

In this regard, this Agency simply points out that this entire allegation refers to the prescription of crimes in the criminal sphere, while in the present case we are in the administrative sphere, which is governed by the aforementioned.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
47/74

Additional Provision 4 of RD 463/2020. Furthermore, the aforementioned regulation cannot be interpreted in the manner proposed by the appellant, as adopting such an interpretation would mean that all infractions would have expired during the cited period merely due to the passage of time, given that the Administration was bound and unable to pursue them.

For all the above reasons, this allegation is dismissed.

3.4. Violation of the principle of legal certainty and the principle of non-retroactivity of unfavorable sanctioning provisions due to the improper application of Additional Provision 4 of RD 463/2020 to the statute of limitations for administrative infractions.

The appellant argues that the application of Additional Provision 4 to the statute of limitations for infractions would be contrary to the principle of legal certainty and the prohibition of retroactivity of unfavorable or restrictive sanctioning provisions, as established in Article 9.3 of the Spanish Constitution.

It cites the Judgment of the Provincial Court of Guadalajara (Section 1, No. 241/2022, of December 1, 2022):

"Assuming that the fourth additional provision of RD 463/2020 had effectiveness in this matter would affect some material foundations of the statute of limitations for the crime, such as the principle of legal certainty and legality in criminal matters, which requires that anyone who allegedly commits a criminal act be judged according to the regulations in force at the time of the events, both in terms of the criminal classification of the crime and the causes that generate the extinction of their responsibility, without subsequent regulations affecting them, unless they are more favorable, with the constitutional legislator prohibiting the contrary hypothesis by guaranteeing the principle of non-retroactivity of unfavorable sanctioning norms (Art. 9.3 of the Constitution). As stated in STS 613/2003 of June 20 (RJ 2003, 6869) (EDJ 2003/97963), "jurisprudence and doctrine have recently coincided in considering that the institute of the statute of limitations is of a material nature and not procedural, which determines as a consequence that legislative modifications of the terms or conditions of the statute of limitations will be non-retroactive if they harm the defendant and retroactive if they are favorable to them.

Therefore, the applicable regulations for the statute of limitations will, in principle, be the criminal laws in force when such a cause of extinction of criminal responsibility begins to operate, which starts on the date of the commission of the crime or on the date of the suspension of the procedure due to rebellion. Subsequent criminal regulations on the statute of limitations will apply if they are more favorable to the defendant." (the emphasis is from Glovo)

The appellant argues that the previous considerations should extend to the field of sanctioning administrative law, which is governed by the same principles as criminal law, as both are manifestations of *ius puniendi*.

The appellant cites the Judgment of the Administrative Court No. 1 of Salamanca (Section 1), No. 135/2021, of June 3, which ruled in favor of considering an administrative sanction as expired and deemed Additional Provision 4 inapplicable based on the principle of legal certainty:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
48/74

"However, we are faced with a sanctioning procedure, the prescription of the sanction, and in this

regard, Article 9.3 of the Constitution regarding the 'non-retroactivity of unfavorable sanctioning provisions or those that restrict individual rights, legal certainty,' prevents the suspension declared by the Royal Decree from affecting the calculation of the prescription of the sanction, as it would imply a retroactive extension of the prescription period applied."

The appellant argues that this reasoning can be fully extended to the present case of Glovo, in light of the same principle of legal certainty that questions the application to the prescription of administrative infringements.

In this regard, this Agency wishes to reiterate what has already been stated in response to the previous allegation.

And to reinforce what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

In this sense, this Agency wishes to bring to attention the Judgment of the Superior Court of Justice of Madrid, (Contentious-Administrative Chamber), no. 68/2023 of January 17, which, although it analyzes the Third Additional Provision of such Royal Decree, its conclusions could be extended to the Fourth Additional Provision of the Royal Decree in question, since it cannot be interpreted that the Royal Decree is an unfavorable sanctioning provision or one that restricts individual rights:

"As noted by the State Attorney and although it may seem irrelevant, the appealed resolution incurs a material error. This is because it states that there were two failed attempts to notify the expulsion. The truth is that, as the appellant himself admits and is evident from the file [page 31], after a first attempt at notification on 6/7/21 when the appellant was absent, the notification took place on 6/8/21, with his signature recorded on the acknowledgment of receipt.

From there, it must be taken into account that the initiation of the procedure occurs on 2/19/20 and that it becomes decisive to understand whether the expiration period has elapsed, the effects granted to the suspension of deadlines established by the Third Additional Provision of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, in relation to Article 9 of Royal Decree 537/2020, of May 22, which extends the state of alarm.

The thesis adopted by the Judgment is that such suspension cannot operate to the detriment of the administered. It interprets that the suspension implied an unfavorable extension for the citizen and contrary to Article 9.3 of the Constitution. For his part, the State Attorney rightly emphasizes that what the trial judge is actually doing is disregarding a provision with the rank and value of law without, as would be necessary, promoting the question of unconstitutionality under Article 163 of the Constitution. This is a matter on which this Chamber and Section have already had the opportunity to pronounce [among others, Judgment No. 776/2022, of October 3 (rec. C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

49/74

839/2021)]. As stated therein, "it cannot be considered unequivocally and indisputably that the aforementioned Additional Provision Three is a sanctioning provision that is unfavorable or restrictive of individual rights, given that its objective is not to limit or restrict rights but to safeguard the right of citizens to interact with Public Administrations and the normal exercise by Public Administrations in their relations with citizens in light of the difficulties for the normal exercise of those rights and powers arising from the limitations on the freedom of movement of persons and the other exceptional measures contained in the Royal Decree-Law. The application of the suspension of administrative deadlines established in Royal Decree 462/2020, through Additional Provision Three, is applicable to sanctioning procedures or those restricting individual rights initiated before the declaration of the state of alarm and pending resolution at the time of the entry into force of the aforementioned legal norm, producing favorable effects for the affected citizens" [F.D. 2nd]. Consequently, due to the application of Additional Provision Three of Royal Decree 463/2020, of March 14, it cannot be stated that the expiration of the expulsion file has occurred due to the notification of the expulsion resolution having taken place six months after the start date of that procedure.

From the above, the acceptance of the appeal is inferred, leading to the consequent revocation of the

Judgment. This, in turn, must translate into the dismissal of the appeal filed in the instance, confirming the challenged administrative action.

Given that it cannot be understood that Additional Provision Four of Royal Decree 463/2020 is a sanctioning provision that is unfavorable or restrictive of individual rights, the principles of legal certainty and non-retroactivity of unfavorable sanctioning provisions would not have been violated. Therefore, for all the reasons stated, the present allegation is dismissed.

3.5. Annulment of the sanction of 550,000 Euros due to the prescription of the infringement of Articles 25 and 32 of the GDPR.

The appellant explains that, in their opinion, considering the points made in the previous sections, it is clear that Additional Provision 4 of RD 463/2020 did not affect the prescription period for the infringement due to the alleged violation of Articles 25 and 32 of the GDPR.

“As in the present case, the dies ad quem for the two-year prescription would be May 18, 2022 [...]”.

The appellant argues that by May 18, 2022, the interruption of the prescription derived from the initiation of sanctioning procedure 209/2022 had not yet occurred. The draft agreement to initiate this procedure was issued on May 18, 2022, but was not made available to Glovo until May 19, 2022, who accessed the notification on May 27, 2022. This last date is when the notification is understood to have been made, according to the provisions of Article 43.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

The appellant argues that the interruption of the prescription occurs once the agreement to initiate a sanctioning procedure is notified, not when it is issued. This is provided for in Article 30.2 of the LRJSP, which states that the prescription will occur when a sanctioning procedure is initiated “with the knowledge of the interested party”:

“The initiation, with the knowledge of the interested party, of an administrative procedure of a sanctioning nature will interrupt the prescription [...]”.

And Article 75 of the LOPDGDD states the following:

“The initiation, with the knowledge of the interested party, of the sanctioning procedure will interrupt the prescription, restarting the prescription period if the sanctioning file has been paralyzed for more than six months for reasons not attributable to the alleged infringer.

When the Spanish Data Protection Agency holds the status of the main supervisory authority and the procedure provided for in Article 60 of Regulation (EU) 2016/679 must be followed, the formal knowledge by the interested party of the draft initiation agreement submitted to the interested supervisory authorities will interrupt the prescription” (the highlighting is from Glovo).

For all the above, the appellant concludes that the infringement for the violation of Articles 25 and 32 of the GDPR had prescribed at the moment when the interruption of this prescription would have occurred (May 27, 2022, the date of notification of the draft initiation agreement of the sanctioning procedure), since this prescription occurred on May 18, 2022.

And that the sanction imposed for this infringement must be annulled.

In this regard, this Agency reiterates what has already been stated both in the Sanctioning Resolution subject to this appeal and in the present resolution.

This Agency reiterates that Additional Provision Four of the Royal Decree of March 14, declaring the state of alarm for the management of the health crisis situation caused by COVID-19 is applicable to the present case.

Article 64 of the LOPDGDD “Form of initiation of the procedure and duration” in its section 2 states:

“(…)”

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it will be initiated by an initiation agreement adopted on its own initiative or as a result of a complaint.

“(…)”

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure shall commence with the adoption of the draft agreement to initiate sanctioning proceedings, of which formal notice shall be given to the interested party for the purposes provided in Article 75 of this organic law.”

And Article 75 “Interruption of the limitation period for the infringement” of the LOPDGDD establishes: “(...)

When the Spanish Agency for Data Protection holds the status of the main supervisory authority and the procedure provided in Article 60 of Regulation (EU) 2016/679 must be followed, the formal knowledge by the interested party of the draft agreement to initiate proceedings submitted to the interested supervisory authorities will interrupt the limitation period.”

And the Fourth Additional Provision “Suspension of limitation and expiration periods” of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, provided that:

“The limitation and expiration periods for any actions and rights shall be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted.”

And Article 9 “Administrative deadlines suspended by Royal Decree 463/2020, of March 14.” of Royal Decree 537/2020, of May 22, which extends the state of alarm declared by Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, established that:

“Effective from June 1, 2020, the calculation of the administrative deadlines that had been suspended will resume, or will restart, if so provided in a law approved during the duration of the state of alarm and its extensions.”

In the present case, it is a sanctioning procedure in which the AEPD holds the status of the main supervisory authority, as it involves cross-border processing carried out by a company (the appellant) that has its main establishment in Spain and provides services to several countries in the European Union, so the rules established in Article 60 of the GDPR apply. Therefore, it is the adoption of the draft agreement to initiate sanctioning proceedings that initiates the sanctioning procedure and interrupts the limitation period for the infringement, which is the formal knowledge of the draft agreement to initiate by the appellant.

According to the file, the draft agreement to initiate the present sanctioning procedure was adopted on May 18, 2022, and was notified to the appellant on May 27, 2022.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

52/74

Therefore, considering that the dies ad quem of the two-year limitation period is May 18, 2022, but taking into account that due to the exceptional situation caused by COVID-19, both the limitation and expiration periods were suspended from March 14, 2020, until June 1, 2020, the infringement of Articles 25 and 32 of the GDPR was not time-barred.

In particular, this Agency wishes to emphasize that the dies ad quem of the two-year limitation period for the infringement of Articles 25 and 32 of the GDPR, considering the aforementioned suspension, would be August 8, 2022.

Since the draft agreement to initiate the sanctioning procedure was notified to the appellant on May 27, 2022, such infringement was not time-barred.

For all the above reasons, this allegation is dismissed.

FOURTH-. DISPROPORTIONALITY OF THE AMOUNT OF THE SANCTION. NON-EXISTENCE OF THE AGGRAVATING CIRCUMSTANCES ALLEGED AND EXISTENCE OF MITIGATING CIRCUMSTANCES NOT TAKEN INTO CONSIDERATION.

4.1. Preliminary Issues

In this section, the appellant limits itself to summarizing the Sanctioning Resolution regarding the graduation of the sanction for the infringement of Articles 25 and 32 of the GDPR, which it considers

did not take into account the “Guidelines 4/2022 on the calculation of administrative fines under the GDPR,” adopted by the European Data Protection Board on May 12, 2022 (hereinafter, the “Guidelines 4/2022”).

In this regard, this Agency wishes to clarify that the aforementioned Guidelines 4/2022 were submitted for public consultation, which ended on June 27, 2022, and their final version is still pending.

4.2. The imposed sanction violates the principle of proportionality, as it has been quantified in contravention of the criteria established in the Guidelines 4/2022.

The appellant argues that Article 83.1 of the GDPR provides that administrative fines imposed by supervisory authorities shall, in each individual case, be effective, proportionate, and dissuasive. Therefore, undoubtedly, one of the principles governing any sanctioning procedure in the field of data protection is the principle of proportionality.

It indicates that this principle of proportionality is inherent to any sanctioning procedure, constitutes the fundamental principle that governs the process of sanction graduation, and implies its adequacy to the seriousness of the act constituting the infringement, as required by Article 29.3 of the LRJSP.

The appellant explains that any sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the case.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
53/74

with the circumstances of the fact. And it cites the Supreme Court in its Judgments No. 6602/2004, of December 3, and No. 5149/2009, of April 12.

The appellant argues that in order to ensure a uniform application of the sanctioning regime provided for in Article 83.1 of the GDPR, and to guarantee the principle of proportionality, the European Data Protection Board adopted Guidelines 4/2022, which establish a clear methodology for calculating sanctions.

According to what is provided in paragraph 61 of Guidelines 4/2022, an initial amount of the sanction should be calculated through a range of percentages, which depend on the severity of the alleged infringement. In the case of infringements with medium severity, comparable to the serious sanctions provided for in Article 73 of the LOPDGDD, it is understood that the initial amount should be set in a range of between 10% and 20% of the maximum legal applicable.

The appellant explains that the maximum legal applicable would be 2% of the annual turnover, which has been determined at ***AMOUNT.1. Therefore, the initial amount should be set in a range between 0.2% of the annual turnover (***AMOUNT.2) and 0.4% of the annual turnover (***AMOUNT.3). Thus, the sanction imposed by the Sanctioning Resolution, with an amount of 550,000 euros, would have already exceeded the maximum limit of this range.

In this regard, this Agency wishes to point out that one issue is the classification of an infringement according to the GDPR and another very different issue is the classification of that infringement for the purposes of prescription according to the LOPDGDD.

Infringements in the field of data protection are classified in sections 4, 5, and 6 of Article 83 of the GDPR. It is a classification by reference, fully accepted by our Constitutional Court. In this sense, Article 71 of the LOPDGDD also makes reference to them by stating that “Acts and behaviors referred to in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law.”

In this regard, the Opinion of the Council of State of October 26, 2017, regarding the Draft Organic Law on the Protection of Personal Data states that “The European Regulation does classify, even if in a generic sense, the behaviors constituting an infringement: indeed, sections 4, 5, and 6 of its Article 83 contain a catalog of infringements for violation of the provisions of the European norm indicated in those sections. Article 72 of the Draft Law rightly assumes the existence of such a catalog when it states that ‘acts and behaviors that constitute a violation of the content of sections 4, 5, and 6 of the

European Regulation and of this organic law constitute infringements.”

For its part, the infringements established in Articles 72, 73, and 74 of the LOPDGDD are only for the purposes of prescription, as stated at the beginning of each of these provisions. This necessity arose in our State since there is no in the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
54/74

The GDPR makes no reference to the statute of limitations regarding infringements, as this legal institution is not common to all EU Member States.

It must be understood that the GDPR is a directly applicable legal norm, which has been developed by the LOPDGDD only in those aspects permitted by the former. This is evident regarding the statute of limitations in the preamble of the LOPDGDD when it states that “The categorization of infringements is introduced solely for the purpose of determining the limitation periods, with the description of typical behaviors having the sole object of exemplifying some of the sanctionable acts that must be understood as included within the general types established in the European norm. The organic law regulates the cases of interruption of the statute of limitations based on the constitutional requirement of knowledge of the facts attributed to the person.”

It is from the application and interpretation of the GDPR, and not from the LOPDGDD, that determines the severity of an infringement based on a series of conditions provided for therein.

As can be seen, there is no classification in the GDPR of very serious, serious, or minor infringements typical of the Spanish legal system, nor can it be deduced from its wording that the violation of the provisions of Article 83.4 of the GDPR corresponds to minor infringements and the provisions of Article 83.5 or Article 83.6 of the GDPR correspond to serious infringements.

Thus, Recital 148 speaks of serious infringements in contrast to minor ones when it states that “In the case of a minor infringement, or if the fine that would likely be imposed would constitute a disproportionate burden for a natural person, instead of a penalty by fine, a warning may be imposed. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringement, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the responsible party or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances.”

For all these reasons, the severity of an infringement is determined for the purposes of the GDPR and with the elements provided by it.

Once again, the aforementioned Opinion of the Council of State must be brought up, which explains this in great detail: “On the other hand, the European Regulation does not distinguish, when setting the amount of sanctions, between very serious, serious, and minor infringements, as stated in the preamble of the Draft Bill. In reality, the European norm merely distinguishes, based on the maximum quantitative limit of the fine to be imposed, between certain infringements that can be sanctioned 'with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year' (paragraph 4 of Article 83), and other infringements that can be sanctioned 'with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year.’”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
55/74

(paragraphs 5 and 6 of Article 83). From this distinction, it can be inferred that, for the Law of the European Union, the infringements classified in paragraphs 5 and 6 of Article 83 can be of the same and greater severity than those contemplated in paragraph 4 of the same Article 83 of the European Regulation. The European norm thus limits itself to establishing two categories of infringements based on their severity.

The Draft Bill, on the other hand, contemplates three categories of infringements: Article 73 of the Draft Bill considers "very serious" infringements to be the "substantial violation" of the provisions mentioned in paragraphs 5 and 6 of Article 83 of the European Regulation; Article 74 of the Draft Bill considers "serious" infringements to be the "substantial violation" of the provisions mentioned in paragraph 4 of Article 83 of the European Regulation; and Article 75 considers "minor" infringements to be the remaining "infringements of a merely formal nature" of the provisions mentioned in paragraphs 4 and 5 of Article 83 of the European Regulation.

The tripartition made by the Draft Bill results from the distinction between "substantial violations" and "merely formal infringements" of the provisions mentioned in paragraphs 4, 5, and 6 of Article 83 of the European Regulation: if they are substantial violations, they will be considered "very serious" infringements when the violated provisions are those mentioned in paragraphs 5 and 6, or "serious" when the violated provisions are those mentioned in paragraph 4, while if they are merely formal infringements of such provisions, they will in any case be considered "minor."

This distinction between "substantial violations" and "merely formal infringements" and the consequent inclusion of a third category of "minor infringements," distinct from serious and very serious infringements, has been made - as is evident from the file and the very wording of the Draft Bill - solely for the purpose of establishing the limitation periods for infringements and not for determining the amount of administrative fines, which requires, for better understanding, some additional clarifications.

The limitation periods for infringements are not provided for in the European Regulation and, therefore, there is a tacit but peaceful understanding that the Member States have the competence to establish such periods. The determination of such periods must be based, as is well known, on the severity of the infringement. Well, the infringements provided for in paragraph 4 of Article 83, on one hand, and in paragraphs 5 and 6 of Article 83 of the European Regulation, on the other, have a different maximum limit - 10,000,000 euros or 2% of the turnover in the first case, 20,000,000 euros or 4% of the turnover in the second - but the same minimum limit, which in both cases is 1 euro. The existence of such wide quantitative margins indicates that the infringements of Article 83, whether those of paragraph 4 or those of paragraphs 5 and 6, can be of very different magnitude and that, for this reason, those infringements that, due to their severity, are close to the upper quantitative limit cannot have the same limitation period as those that, due to their minor nature, are closer to the lower quantitative limit. Under such circumstances, the establishment of limitation periods would not be satisfactorily resolved by applying a longer period to the infringements of the provisions mentioned in paragraphs 5 and 6 of Article 83 than to the infringements of the provisions mentioned in paragraph 4 of Article 83.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
56/74

Given that the infractions contemplated in both provisions, in the case of being minor, would require a shorter statute of limitations.

From this perspective and with the sole purpose of establishing its statute of limitations, the Draft Bill has distinguished between "merely formal infractions" and "substantial violations" of such provisions, considering the former as "minor infractions" with a statute of limitations of one year and the latter as "serious" and "very serious infractions" with statutes of limitations of two and three years respectively. In the opinion of the Council of State, this classification of infractions, insofar as it is carried out solely for the purpose of determining statutes of limitations for infractions not provided for in the European Regulation, cannot be understood as contrary to the provisions of European law.

This classification, however, does not have significance regarding the amount of fines. The determination of the amount of fines to be imposed for the violation of the provisions mentioned in paragraphs 4, 5, and 6 of Article 83 of the European Regulation is, according to European law, the responsibility of the supervisory authorities, in accordance with the grading criteria established in paragraph 2 of this same provision, among which is the "nature" or "seriousness" of the infraction. Within the quantitative limits established by the European Regulation, the supervisory authorities, taking into account the greater or lesser severity of the infraction, must set the amount of the fines. Certainly, the margins available to the supervisory authorities are very broad—from 1 euro to 10,000,000 euros for violations of the provisions mentioned in paragraph 4 of Article 83 and from 1 euro to 20,000,000 euros for violations of the provisions mentioned in paragraphs 5 and 6—which grants such authorities a high degree of discretion, much greater than is usually customary in countries of our legal tradition. This is, in any case, the model desired by the European Regulation, hence the distinction between minor, serious, and very serious infractions contemplated in the Draft Bill cannot have consequences in determining the maximum amount for minor infractions, which must be based on the determination of their amount made by the supervisory authorities, according to the circumstances of the specific case, within the limits set in that regulation.

Thus, the classification of infractions for the purposes of the statute of limitations of the LOPDGDD has no bearing on the determination of the seriousness of the infraction for the purposes of the GDPR nor regarding the imposition of the corresponding fines, if applicable.

By way of mere illustration, it can be indicated that the same conduct, such as the lack of information in a company's privacy policy, may be considered serious or minor for the purposes of the Regulation (in light of the circumstances mentioned in Recital 148 in relation to the provisions of Article 83 of the GDPR, as the non-compliance by a multinational company is not the same as that by a sole trader) and in both cases with a minor statute of limitations. The seriousness of an infraction will determine its sanction.

For its part, the aforementioned "Guidelines 04/2022 for the calculation of administrative fines under the GDPR," in its section 4, paragraphs 47 to 70, explain a

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

57/74

series of criteria for establishing the starting point for the harmonized calculation of the fines to be applied.

In this regard, the EDPB considers that three elements constitute the starting point for this calculation: the classification of the infringements according to their nature in accordance with Articles 83 (4) to (6) of the GDPR, the severity of the infringement according to Article 83, paragraph 2, of the GDPR, and the turnover of the company.

Regarding the classification of infringements by their nature, according to Article 83.4.a) of the GDPR, the infringement of the obligations of the controller and the processor under Articles 25 to 39 of the GDPR shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount.

In this case, it is considered a proven fact that the appellant had a turnover of ***CANTIDAD.1 in the year 2021.

Therefore, the maximum applicable fine would be 2% of this amount, that is, ***CANTIDAD.4.

Regarding the severity of the infringement according to Article 83.2 of the GDPR, the aforementioned Guidelines 04/2022 indicate that the GDPR establishes that due attention must be paid to the circumstances that qualify the severity of the infringement in an individual case. And that the GDPR requires the supervisory authority to pay due attention to the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question, as well as the number of affected data subjects and the level of harm suffered by them [Article 83, paragraph

2, letter a), of the GDPR]; the intentional or negligent character of the infringement [Article 83, paragraph 2, letter b), of the GDPR]; and the categories of personal data affected by the infringement [Article 83, paragraph 2, letter g), of the GDPR].

And that the supervisory authority must review these elements in light of the circumstances of the specific case and, based on this analysis, must reach a conclusion regarding the degree of severity indicated in paragraph 61.

To assess the nature, severity, and duration of the infringement, the aforementioned Guidelines indicate that the following specific elements must be evaluated:

a) The nature of the infringement: the interest that the breached provision seeks to protect and the place of the breached provision within the framework of data protection must be reviewed. In this case, Articles 25 and 32 of the GDPR aim to protect the security and confidentiality of data, as well as to ensure a data protection approach before and throughout the processing, which ensures compliance with the requirements of the GDPR and protects the rights of the data subjects. Furthermore, the Guidelines provide that the supervisory authority may examine to what extent the infringement hindered the effective application of the provision and the achievement of the objective it sought to protect. In this case, the infringement in question

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

58/74

prevented the objective pursued by the infringed provisions, as the security of the personal data of the delivery personnel was compromised and their rights were violated.

b)

The severity of the infringement, assessed based on the specific circumstances:

i. The nature of the processing, including the context in which it is functionally based and all the characteristics of the processing. The aforementioned Guidelines state that when the nature of the processing entails greater risks, for example, when decisions or measures are taken with negative effects for the data subjects, as in the present case, where the use of the "excellence score" could determine that a particular delivery person was excluded from a specific time slot, resulting in a corresponding detriment to their income, the supervisory authority may consider giving more weight to this factor. The aforementioned Guidelines also state that a supervisory authority may give more weight to this factor when there is a clear imbalance between the data subjects and the data controller (for example, when the data subjects are employees of the data controller, as in the present case).

ii. The scope of the processing, with reference to the local, national, or cross-border scope of the processing carried out and the relationship between this information and the actual scope of the processing in terms of resource allocation by the data controller. The aforementioned Guidelines explain that this element highlights a real risk factor, linked to the greater difficulty of the data subject and the supervisory authority to curb unlawful conduct as the scope of the processing increases. The greater the scope of the processing, the more weight the supervisory authority may attribute to this factor. In the present case, it is a cross-border processing of all the data that the appellant had of all its delivery personnel working in the European Union, so the scope of the processing was considerably broad.

iii. The purpose of the processing: The aforementioned Guidelines explain that the supervisory authority may also consider whether the purpose falls within the so-called core activities of the data controller. And that the more central the processing is to the main activities of the controller or the processor, the more serious the irregularities in this processing will be. The supervisory authority may give more weight to this factor under these circumstances. In the present case, the processing of the personal data of its delivery personnel based on the "excellence score" was a central processing activity among the activities carried out by the appellant.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

iv. The number of affected parties, both specifically and potentially: The aforementioned Guidelines indicate that the greater the number of affected parties involved, the more weight the supervisory authority may attribute to this factor. Furthermore, in many cases, it may also be considered that the infringement acquires "systemic" connotations and, therefore, may affect, even at different times, other parties who have not submitted complaints or reports to the supervisory authority. Depending on the circumstances of the case, the supervisory authority may consider the relationship between the number of affected parties and the total number of parties in that context (for example, the number of citizens, customers, or employees), in order to assess whether the infringement is of a systemic nature. In the present case, the rights of 7,073 couriers of the appellant were considered affected, that is, the entirety of their active couriers in a given month, which is why it is considered that the infringement in question acquired "systemic" connotations according to the aforementioned Guidelines.

v. The level of harm suffered and the extent to which the behavior may affect individual rights and freedoms: The aforementioned Guidelines indicate that, in accordance with Recital 75 of the GDPR, the level of damages suffered refers to physical, material, or immaterial damages. In the present case, it has been established that the privacy of all Glovo couriers working in the European Union was violated.

a) The duration of the infringement: The aforementioned Guidelines state that, in general, a supervisory authority may attribute more weight to an infringement of longer duration. They indicate that a certain behavior could have also been unlawful under the previous regulatory framework, thus adding an additional element to assess the severity of the infringement. The longer the duration of the infringement, the greater the weight the supervisory authority may attribute to this factor. In the present case, it has been established that the infringement has occurred since the founding of Glovo in 2014 until May 2020.

Regarding the intentional or negligent nature of the infringement, in this case, this Agency has already indicated on numerous occasions that it does not consider that there was any intent to infringe on the part of the appellant, but rather considers that it acted with gross negligence. In this regard, the aforementioned Guidelines indicate that, depending on the circumstances of the case, the supervisory authority may also weigh the degree of negligence. The appellant is a large company in its business sector, which must safeguard the rights and freedoms of its workers, among others, the fundamental right to the protection of their personal data. In the present case, this Agency considers that it has not been diligent in configuring its permission system. In particular, considering that it is not only a large company from which greater professionalism could be expected,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

but rather it is an entity accustomed to the processing of personal data. In this regard, the SAN of October 17, 2007 (rec. 63/2006) is very illustrative, which indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

Denying the occurrence of negligent conduct by the appellant would be equivalent to acknowledging that their behavior—by action or omission—has been diligent. Obviously, this perspective of the facts is not shared, since the lack of due diligence has been established.

This Agency reiterates that throughout the corresponding sanctioning procedure, it has been established that the access permission system for the data of the delivery personnel, implemented by

the appellant, did not initially comply with the principles and obligations established by the GDPR, since the company did not conduct a prior analysis of the processing in which the possible implications for the rights and freedoms of the data subjects were duly analyzed and the appropriate measures for the access permission management system were determined based on it. Rather, the opposite occurred; the appellant did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were computer “patches,” solving problems as they were encountered according to the changing structure of the organization, as has been stated in their allegations during the sanctioning procedure.

Due to the importance of the protected legal asset, the appellant was obliged to find organizational solutions that did not pose a greater risk to the rights and freedoms of its delivery personnel and that guaranteed the security of the data, regardless of the size of its organization or the number of employees it had, since these risks were what needed to be taken into account regardless of the number of delivery personnel at any given time.

The access permission system for the data of the delivery personnel was not configured in the initial moments taking into account the possible risks to the rights and freedoms of its delivery personnel, nor was it configured in such a way that, by default, the data of the delivery personnel would not be accessible unless necessary for the purpose. The appellant should have ensured that, by default, access to the data of the delivery personnel was limited to the necessary geographical scope, in compliance with Article 25.2 of the GDPR.

Having established the above, it can be affirmed that, from the instruction of the procedure, it was also found, among other things, the lack of a mechanism for access permissions to the personal data of the delivery personnel that prevented users from accessing data that was not necessary and that guaranteed the security of the data, as required by Article 32 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

61/74

Likewise, the fact that the appellant subsequently implemented modifications to the existing technical or organizational measures corroborates that the previous ones did not provide adequate security. In light of all the above, this Agency considers that the behavior of the appellant has been severely negligent.

Regarding the categories of personal data affected by the infringement, the aforementioned Guidelines explain that the GDPR clearly highlights the types of data that deserve special protection and, therefore, a stricter response in terms of fines, making special reference to data outside the scope of Articles 9 and 10 of the GDPR whose dissemination causes immediate harm or difficulties to the data subject, such as location data, as in the present case.

Once all the aforementioned aspects have been evaluated, the cited Guidelines state that all of them determine the severity of the infringement as a whole. Based on the assessment of the factors described above, the supervisory authority may consider that the infringement is of a low, medium, or high level of severity, without prejudice to the question of whether or not a fine can be imposed.

In the present case, based on the entire analysis previously outlined, this Agency considers that the infringement in question is of a high level of severity.

In this regard, the cited Guidelines indicate that when calculating high-level severity infringements of administrative fines, the supervisory authority will determine the starting amount for further calculation at a point between 20% and 100% of the applicable legal maximum.

Therefore, in the present case, the starting amount for calculating the fine would be between 20% and 100% of ***CANTIDAD.4, that is, between ***CANTIDAD.3 and ***CANTIDAD.4.

Secondly, the appellant argues that paragraph 67 of the Guidelines 4/2022 provides that for companies with a turnover of between 100 million and 250 million, the initial calculations will be carried out based on an amount lower than 20% of the identified initial amount. Therefore, the previous range should be reduced by 20%, so that the range would be between ***CANTIDAD.5 and ***CANTIDAD.6. The appellant understands that the imposed sanction would exceed this maximum range that should

be applied considering the turnover amount of GLOVO.

Regarding the company's turnover, the cited Guidelines allow the supervisory authority to adjust the starting amount corresponding to the severity of the infringement in cases where such infringement is committed by a company whose annual turnover does not exceed 100 million euros, whose annual turnover does not exceed 250 million euros, and an annual turnover not exceeding 500 million euros. In the case of companies with an annual turnover of 100 million EUR up to 250 million EUR, it allows for the...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
62/74

supervisory authorities consider the possibility of calculating based on an amount that reduces the identified starting amount by 20%.

In this case, it could be considered that the starting amount for imposing an administrative fine should be set between ***AMOUNT.6 and ***AMOUNT.5. However, it should be noted that the aforementioned Guidelines emphasize that these figures are starting points for subsequent calculations, and not fixed amounts for violations of the provisions of the GDPR. And that the supervisory authority has the discretionary power to utilize the entirety of the fines, from any minimum fine to the legal maximum, ensuring that the fine is adapted to the circumstances of the case. As can be observed, the fine imposed by this Agency of €550,000 does not exceed (nor does it even come close to) the maximum that should be applied considering the amount of the turnover of the appealing party.

For all the reasons stated, this allegation is dismissed.

4.3. Non-existence of the aggravating circumstances alleged by the AEPD in its Sanctioning Resolution

The appealing party alleges that the Sanctioning Resolution considers that three aggravating circumstances would modulate the imposed sanction, but that none of these aggravating factors are present in this case, for the following reasons:

I. Nature, severity, and duration of the infringement —subsection a) of article 83.2 of the GDPR—: In the Sanctioning Resolution, it is justified that this aggravating factor is present due to the impact on the rights of 7,073 delivery workers. However, the appealing party argues that it has not been demonstrated that the alleged infringement caused any quantifiable damage to the affected parties, such that it cannot be stated that there has been an impact on the legal interest protected by this aggravating factor.

The appealing party claims that the Sanctioning Resolution merely states that “the level of damage suffered by the affected parties is one of the possible criteria for graduation” (see page 117), but that there may be other criteria for assessing this aggravating factor. However, the appealing party understands that it is not specified or justified why this aggravating factor is considered to be present when no damage has been caused.

Therefore, the appealing party believes that this aggravating factor should not be considered, as the Sanctioning Resolution does not justify why this aggravating factor should be applied when it has been established that the alleged infringement has not caused any damage to the affected parties.

In this regard, this Agency wishes to recall the wording of the Sanctioning Resolution on this matter: “(...) As aggravating factors:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

63/74

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level

of damage and harm they have suffered (subsection a): due to the impact on the rights of 7,073 workers (number of active delivery workers in Spain during the last 30 days as stated in the Preliminary Actions Report of the investigation that led to this sanctioning procedure), until the permission system was corrected, at least until May 18, 2020.
(...)"

That is to say, subsection a) of article 83.2 of the GDPR establishes that the nature, severity, and duration of the infringement must be analyzed. And for this, the following must be taken into account:

- the nature, scope, or purpose of the processing operation in question
- as well as the number of affected parties
- and the level of damage and harm they have suffered

At no point does the aforementioned article of the GDPR state that these three issues are the only ones that must be considered to analyze the nature, severity, and duration of the infringement.

And much less does it state that any one of these aspects, such as the level of damage and harm suffered, is the only one to be taken into account for the aforementioned purposes.

In this sense, as can be observed and in compliance with the provisions of article 83.2.a) of the GDPR, the Sanctioning Resolution in this subsection has highlighted the fact that the infringement has affected the rights of 7,073 delivery workers and that this was the case until May 18, 2020. All of this is for the purpose of assessing the nature, severity, and duration of the infringement in question.

Furthermore, this Agency reiterates what has already been stated in its analysis of subsection a) of article 83.2 of the GDPR, to carry out the calculation of the maximum fine that could be imposed.

For all the reasons stated, this allegation is dismissed.

II. The manner in which the supervisory authority became aware of the infringement —subsection h) of article 83.2 of the GDPR—:

The appealing party alleges that the Sanctioning Resolution considers that this aggravating factor is present since "knowledge was obtained through a request from the Italian data protection authority."

But it considers that this fact, by itself, is not sufficient to justify the existence of this aggravating factor. The appealing party indicates that according to the provisions of point 98 of the Guidelines 4/2022, the fact that knowledge of the infringement is obtained through a complaint or an investigation must be a neutral fact.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
64/74

Furthermore, it indicates that according to that same point of Guidelines 4/2022, this circumstance can only be considered as a mitigating factor in the event that it is the infringer themselves who notifies, of their own accord, the infringement committed outside of any inspection procedure or ordinary notification obligation.

Therefore, the appellant argues that this aggravating factor cannot be appreciated simply because the sanctioning procedure was initiated following a complaint by another data protection authority.

In this regard, this Agency wishes to point out that the aforementioned Guidelines state:

"According to Article 83, paragraph 2, letter h), the manner in which the supervisory authority became aware of the infringement could be a relevant aggravating or mitigating factor. (...)

When the supervisory authority has become aware of the infringement, for example, through a complaint or an investigation, this element should also generally be considered neutral. The supervisory authority may consider this circumstance as mitigating if the controller or the processor notifies the infringement on their own initiative, before the supervisory authority becomes aware of the case." (the underlining is by this Agency)

That is to say, the Guidelines allow the supervisory authority to assess the manner in which it became aware of the infringement as an aggravating factor, taking into account the circumstances of the specific case. Regarding whether the supervisory authority becoming aware of the infringement through an investigation should be considered a neutral factor, the same Guidelines clarify that this is a general rule; therefore, it is contemplated that there may be exceptions where this is not the case.

In the present case, it is a very particular situation, involving authorities from several Member States, which originated because the supervisory authority of one of these States conducted a broad investigation into various aspects of the processing that the appellant was carrying out on a group as exposed as its delivery personnel, considered a vulnerable population since there was a power imbalance in that relationship, given that the delivery personnel could not oppose the processing in question if they wanted to work with the appellant.

For all the above reasons, this allegation is dismissed.

III. Any other aggravating or mitigating factor applicable to the circumstances of the case — paragraph k) of Article 83.2 of the GDPR —:

The appellant argues that the Sanctioning Resolution considers it an aggravating factor, subsumed under paragraph k) of Article 83.2 of the GDPR, the fact that GLOVO is “a large company in its business sector” from which “greater professionalism could be demanded.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

65/74

To this end, it relies on the Judgment of the National Court, dated October 17, 2007, issued in appeal 63/2006.

The appellant believes that the application of this aggravating factor is completely inappropriate and is manifestly contrary to law, as what is intended is to impose an "exemplary sanction" on GLOVO for being who it is.

The appellant argues that the fact that GLOVO is a large company cannot, by itself, entail a greater reproach in the sanctioning of allegedly infringing acts. The only thing it can signify is that a mistake of prohibition of law or an absence of culpability cannot be claimed, which is precisely what was resolved in the Judgment of the National Court cited in the Sanctioning Resolution:

"Thus, in relation to the mistake of prohibition invoked in the claim, we must point out that due to the professionalism of the appellant, the ignorance of an LO that develops a fundamental right cannot be invoked when carrying out an activity in constant contact with personal data; therefore, a mistake in the prohibition cannot be successfully invoked, which, in any case, would be easily overcome." (the emphasis is ours)

Therefore, the appellant understands that GLOVO's professionalism would prevent the appreciation that it has not acted culpably in causing the infringing act, but in no way can this determine the application of an aggravating factor.

The appellant argues that in the manner in which it has been applied, this aggravating factor implies attributing a greater punitive reproach to GLOVO for being who it is, which means applying an author sanctioning law incompatible with our legal system. And that GLOVO is instrumentalized with a purpose of general prevention, attributing a greater legal reproach to its conduct in such a way that the rest of the companies in the sector are compelled to act in a certain direction.

The appellant cites the Judgment of the Constitutional Court No. 150/1991, of July 4, in which it has been stated that an author criminal law, based on the subject who commits the infringement and not on the act committed, is incompatible with the Constitution.

Therefore, the appellant understands that this aggravating factor must be rejected outright and emphatically, as it is not permissible to make a greater legal reproach to GLOVO for being a large company, which is subject to the legal system on equal terms with the rest of the operators, without being required to exercise "greater diligence."

In this regard, this Agency wishes to point out that in no way is "an exemplary sanction" imposed on GLOVO for being who it is.

In fact, the imposed fine is very close to the minimum possible proposed by the aforementioned Guidelines 04/2022, taking into account the seriousness of the infringement, as has been explained in detail in the previous sections of this resolution.

C/ Jorge Juan, 6

www.aepd.es

Therefore, it is difficult to understand that this is a sanction intended to set an example for the rest of the operators.

Regarding the diligence required of the appellant, this aspect has already been analyzed previously, so this Agency limits itself to what has already been noted.

For all the above reasons, this allegation is dismissed.

4.4. Existence of additional mitigating circumstances

The appellant alleges that the following additional mitigating circumstances should be applied:

I. The mitigating factor provided for in Article 83.2.e) of the GDPR, as there are no prior violations:

The appellant argues that the lack of recidivism or reiteration was established as a "mitigating factor of special relevance" in the sanctioning resolution of the sanctioning procedure 120/2021, directed against MERCADONA, S.A.

And that in application of the principle of equality in the application of the law, this same mitigating factor should be applied to GLOVO, as GLOVO has not been sanctioned previously for the acts subject to the Sanctioning Resolution.

In this regard, this Agency wishes to point out that the fact of not having been sanctioned previously can only operate as an aggravating factor and in no case as a mitigating factor.

In this sense, the National Court in its SAN of May 5, 2021 (Rec. 1437/2020) regarding section e) of Article 83.2 of the GDPR, concerning the commission of previous infringements, has stated that:

"On the other hand, it considers that the non-commission of a previous infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that the following circumstances must be taken into account for the imposition of the administrative fine, among others, the circumstance 'e) any previous infringement committed by the controller or the processor.' It is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but does not imply or allow, as the claimant intends, its application as a mitigating factor."

For all the above reasons, this allegation is dismissed.

II. The mitigating factor provided for in Article 83.2.k) of the GDPR, for not having obtained any type of benefits through the infringement.

The appellant argues that the fact of not having obtained any economic benefit through the allegedly infringing acts should also be considered a mitigating factor, as provided for in Article 83.2.k) of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

And that the existence of this mitigating factor when there is an absence of benefits for the offender has been assessed by the Judgment of the National Court, dated December 16, 2021, issued in case number 311/2018 (JUR 2022\65416).

In this regard, this Agency wishes to point out that this Judgment of the National Court refers to Article 45.4 e) of Organic Law 15/1999, of December 13, on the Protection of Personal Data, which was displaced once the GDPR came into application and repealed with the approval of the aforementioned LOPDGDD.

This Agency argues that the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement can only be considered aggravating and not a mitigating factor when there are no benefits, in accordance with the aforementioned Judgment of the National Court, dated May 5, 2021, rec. 1437/2020, which states: "On the other hand, it considers that the non-commission of a previous infringement should be appreciated as a mitigating factor." Therefore, Article 83.2 of the GDPR establishes that, for the imposition of the administrative fine, among other factors, the

circumstance "e) any previous infringement committed by the controller or the processor" must be taken into account. This is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be considered, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor." Applied to the present case, the lack of the prerequisite for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor.

This criterion of gradation is established in the LOPDGDD in accordance with what is provided in Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any "aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement," understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If it is added that the sanctions must be "in each individual case" effective, proportionate, and dissuasive, in accordance with what is provided in Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual prerequisites contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the principles indicated.

Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the norm without obtaining benefits, financial or of any kind, would not produce a negative effect proportional to the seriousness of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with what is established in its Article 83.2, are imposed based on the circumstances of each individual case and it is not considered that the absence of benefits is an adequate and determining factor for assessing the seriousness of the infringing conduct. Only in the case that this absence of benefits is relevant for determining the degree of unlawfulness and culpability present in the specific infringing act can it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which is re-

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

68/74

refers to "any other aggravating or mitigating factor applicable to the circumstances of the case."

This paragraph leaves a door open for those cases where the absence of benefits may be considered a mitigating circumstance, but not in accordance with the literal and teleological interpretation of the legislator as per the provision of art. 83.2.k) of the GDPR.

For all the reasons stated, this allegation is dismissed.

Finally, the appellant argues that, taking into account the existence of these mitigating factors and the absence of aggravating factors, as evidenced in the previous section, the fine should be set at the minimum amount of the previously established range; that is, at ***AMOUNT.5.

In this regard, this Agency notes that, since all previous allegations in this regard have been dismissed, this current allegation is also dismissed. In any case, it should be noted that the amount set as a fine in the Sanctioning Resolution subject to this appeal is within the minimum possible values to be imposed, in accordance with the indications of the aforementioned Guidelines 04/2022.

4.5. The existence of additional mitigating circumstances justifies the reduction of the infringement

The appellant argues that, notwithstanding the above, it should be taken into account that, in application of paragraph 140 of the Guidelines 04/2022, the principle of proportionality requires reducing this amount when there is an inability to pay arising from exceptional circumstances.

And that in this case, the exceptional circumstances referred to in the Guidelines 04/2022 apply, since the economic crisis generated by the pandemic, which extended from 2020 to 2022, as well as the geopolitical conflict between Ukraine and Russia since 2022, have had, and will continue to have, a significant negative impact on the company's economy.

The appellant claims that the Profit and Loss Account for both years 2021 and 2022 indicates that GLOVO had an operating loss in 2021 (...), and in 2022 (...), figures that demonstrate the delicate financial situation in which the company finds itself and that its financial continuity largely depends on its reputation and, consequently, on the outcome of sanctioning procedures such as the present one. The appellant adds that, as evidenced in DOCUMENT 2, in the past month of February 2023, Glovo had no choice (...) to try to mitigate the severe losses it has been incurring due to the economic situation. Additionally, DOCUMENT 3 is attached (...).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

69/74

Therefore, the appellant argues that it would be justified for the maximum sanction of ***AMOUNT.5 to be reduced by one degree, so that the sanction would be a maximum of ***AMOUNT.7.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution subject to this appeal.

Article 83.4 of the GDPR establishes that:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

That is to say, the GDPR does not mention that it should be considered whether the company in question is in a phase of expansion, or whether the company had a negative result in its Profit and Loss Account, nor the possible reputational crisis that could result from the imposition of such a sanction, nor whether there were external factors that could affect the business of the company in question (such as the Covid-19 pandemic or the war in Ukraine), (...).

In this regard, from the information available in Axesor, it has been evidenced that GLOVOAPP invoiced a total of ***AMOUNT.1 in 2021, so the proposed fine of €550,000 does not reach 0.5% of that volume, which would represent a quarter of the maximum possible and would be within the minimum possible values to be imposed, in accordance with the indications of the aforementioned Guidelines 04/2022.

Therefore, this allegation is dismissed.

4.6. Correct sanction amount.

The appellant argues that, taking into account all the aforementioned, and due to the fact that there are exceptional circumstances arising from the economic crisis generated by the pandemic and the war in Ukraine, and the extraordinary decision that Glovo had to adopt to resort to a collective redundancy procedure (ERE), the sanction should be set at ***AMOUNT.7.

In the alternative, the appellant argues that in application of the principle of proportionality and the criteria established by the Guidelines 04/2022, the sanction should be set at the minimum amount of ***AMOUNT.5 resulting from the range calculated according to the criteria of paragraphs 61 and 67 of the Guidelines 04/2022.

In this regard, this Agency wishes to point out that for the reasons detailed in the previous sections, this allegation is dismissed.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

70/74

FIFTH.- ABUSE OF RIGHTS BY THE AEPD AND EXISTENCE OF PATRIMONIAL LIABILITY

5.1. Existence of abuse of rights

The appellant alleges that the AEPD opened a new sanctioning procedure (the current PS/00209/2022) after the previous procedure (PS/00020/2021) was declared expired, based on identical facts and legal grounds, which, in their opinion, has created a situation of evident legal uncertainty for Glovo from the very beginning.

The appellant insists that, after the expiration of a sanctioning administrative procedure, it is unacceptable to open another procedure based on the same facts, as one cannot be sanctioned, nor be "judged" twice for the same matter. In this regard, they add that it cannot be tolerated for an Administration to take advantage of the effects of its inactivity to argue that if it "sanctions again," it cannot be considered that the first time a sanction was imposed because that sanction "was null and void."

Therefore, the appellant argues that a new procedure based on identical facts and legal grounds can only be qualified as a clear act of abuse of rights by this Agency, given that expiration, if it is a tool of guarantee and peace of mind for the citizen, would thus become a mere instrument of the alleged negligence of the officials; an instrument that ultimately falls on the shoulders of Glovo as the administered party, which would not only be subjected to the torture (and, by the way, also to the expenses) of a new file and the uncertainty it entails.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution subject to this appeal.

In the present case, this Agency only declared the expiration of the proceedings on one occasion (procedure number PS/00020/2021) due to the lapse of the 9-month period established for its resolution under Article 64.2 of the LOPDGDD and initiated a new sanctioning procedure for infringements that were not time-barred, as provided for in Article 95.3 of the LPACAP:

"Expiration will not, by itself, produce the time-bar of actions by the individual or the Administration, but expired procedures will not interrupt the time-bar period.

In cases where it is possible to initiate a new procedure due to the absence of time-bar, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into it. In any case, the new procedure must fulfill the procedures for allegations, proposal of evidence, and hearing of the interested party."

Therefore, this is not a case in which several procedures are restarted after successive declarations of expiration, nor in which the existence of an abuse of rights by the Administration can be appreciated.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

71/74

referring to a possibility precisely provided for in the same legislation that regulates the administrative procedure.

In fact, it is established case law of the Supreme Court as set forth in STS 4084/2003, which stated: "The declaration of expiration and filing of proceedings established for procedures in which the Administration exercises sanctioning powers, article 44.2 of Law 30/1992, do not extinguish the action of the Administration to exercise the powers referred to in that provision, being fully applicable the article 92.3 of the same Law."

In this regard, article 44.2 of Law 30/1992, after establishing that the expiration of the term produced the expiration of the procedure ex officio, added: "In these cases, the resolution declaring the expiration shall order the filing of the proceedings, with the effects provided for in article 92."

In a similar vein, among others, the rulings STS 9569/2001, of December 5, and 2716/2002, of April 17, can be cited.

The appellant argues that once the expiration of a procedure is declared, it is unacceptable to proceed with the opening of a new procedure due to the basic principle of ne bis in idem, that is, because one cannot be sanctioned, nor be "judged" twice for the same act. In this sense, it understands that it cannot be tolerable for an Administration to take advantage of the effects of its inactivity to argue that if it "re-sanctions," it cannot be considered that the first time it was sanctioned because that sanction "was null and void."

In this regard, this Agency wishes to point out that the appellant is referring to a completely different situation from that raised in the present case, since it refers to a situation in which a sanction had been imposed once the deadline for it had elapsed, making the sanction null and void, and once appealed, its nullity is declared and a new sanctioning procedure is opened because the infringement is not time-barred.

In the present case, this Agency had not yet issued a resolution when it declared the expiration of the proceedings number PS/00020/2021 and also did not issue a sanctioning resolution subsequently. Therefore, there was no resolution that was null and void. It simply limited itself to declaring the expiration of the proceedings, verifying that the infringements in question had not expired, and opening a new sanctioning procedure, as provided for in article 95.3 of the LPACAP.

Furthermore, in the present case, there has been no delay in the procedure that would have caused the prescription periods to restart due to having been paralyzed for more than six months for reasons not attributable to the alleged infringer (article 75 of the LOPDGDD). Nor has this Agency claimed at any time that the prescription period had been interrupted during the duration of the sanctioning procedure number PS/00020/2021, which has already expired, in order to initiate the sanctioning procedure that is the subject of this appeal.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

72/74

It has simply been limited to applying the aforementioned article 95.3 of the LPACAP, which contemplates the possibility of initiating a new procedure due to the lack of prescription of the infringement, as in the present case.

And this Agency understands that one cannot speak of legal uncertainty or a clear abuse of rights on the part of this Agency when it is the same law that regulates the administrative procedure that contemplates the option of initiating a new sanctioning procedure if the infringement in question is not prescribed, in the event that the previous actions have expired due to not having been resolved within the established timeframe.

Finally, this Agency wishes to point out that the present procedure does not address whether the appellant has suffered from "torture" and "uncertainty" regarding its actions, which in this case have always complied with the applicable regulations and even the consolidated doctrine of the Supreme Court.

For all the above reasons, this allegation is dismissed.

5.2. Existence of liability of the Administration

The appellant reminds this Agency that, regardless of having had to involve other interested control authorities, it is evident that its inaction caused the expiration of the previous procedure PS No. PS/00020/2021 and, in the present procedure, has led to the need to reiterate the allegations that it had already presented at that time, with the corresponding direct costs for attorney fees, expert witnesses, and time dedicated to the defense.

It understands that these costs incurred by Glovo constitute an effective, economically assessable, and individualized damage attributable to the AEPD, which arise from an abnormal functioning of the Agency due to its clear inaction.

And it reiterates that it reserves the necessary actions to claim the liability of the Administration for the damages caused by its inaction.

In this regard, this Agency wishes to reiterate what has already been stated in the aforementioned Sanctioning Resolution that is the subject of this appeal.

This Agency wishes to emphasize that the present procedure does not address the possibility of appreciating the liability of the Administration, which would be the subject of another procedure, and this Agency makes it clear that the appellant is free to take any actions it deems necessary for that purpose.

While it is true that it seems difficult to consider that there could be liability for the fact that the

Administration acts in accordance with a provision expressly provided for in procedural legislation, such as the aforementioned article 95.3 of the LPACAP, which expressly provides for the possibility of initiating a new procedure due to the expiration of the previous one, if the infringement in question is not prescribed (as in the present case).

For all the above reasons, this allegation is dismissed.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

73/74

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nonetheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by GLOVOAPP23, S.A. against the resolution of this Spanish Agency for Data Protection issued on March 7, 2023, in file RR/00261/2023.

SECOND: TO NOTIFY this resolution to GLOVOAPP23, S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

Upon receiving the notification and once executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the payment

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

74/74

The voluntary payment deadline will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

180-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es